



## PARLIAMENTARY DEBATES

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### OFFICIAL REPORT

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THE  
PARLIAMENT OF THE REPUBLIC  
OF GHANA

FIRST MEETING, 2026

Tuesday, 17<sup>th</sup> March, 2026

*The House met at the Chamber,  
Parliament House, at 1:13 p.m.*

[HON FIRST DEPUTY SPEAKER,  
MR BERNARD AHIAFOR, IN THE  
CHAIR]

[PRAYERS]

**Mr First Deputy Speaker:** Hon Members, in the absence of Roll Call, the Message from the President and Formal Communication from the Speaker, we move straight to take the item numbered 5, *Correction of Votes and Proceedings* and the *Official Report*.

**VOTES AND PROCEEDINGS AND  
THE OFFICIAL REPORT**

**Mr First Deputy Speaker:** We have before us the *Votes and Proceedings* of Monday, 16<sup>th</sup> March, 2026, for correction.

Page 1...11— Yes, Hon Member?

**Mr Frank Afriyie:** Mr Speaker, I am so grateful for the opportunity.

Mr Speaker, may I draw your attention to the page numbered 11, the item lettered “a”, concerning the Statement that was jointly in the names of the Hon Members for Mpraeso and Bunkpurugu. This is specifically on the second line; the name of the

Constituency as spelt, “Bunkprugu”, is wrong. If the Clerks-at-the-Table could take note and correct it.

**Mr First Deputy Speaker:** Table, kindly cross-check.

Page 12, 13—Yes, Hon Member?

**Mr Afriyie:** The spelling for the title as written, “National Security Coordinator” on the page numbered 12, is not hyphenated but that of what is captured on the page numbered 13, the item numbered 6, has been hyphenated. So, for the sake of internal coherence and consistency—

**Mr First Deputy Speaker:** Table, reconcile.

Page 14...25— Yes, Hon Member?

**Mr Afriyie:** On the page numbered 24, the item “iv”, the title “Director General” as written, is not hyphenated. I am aware that by practice, it is often hyphenated.

Again, the first abbreviation for the Ghana Education Service which is “GES” as captured was put in brackets in the first instance but the subsequent ones were not. So, we need to adopt a style that is consistent with the practice of the House.

Thank you.

**Mr First Deputy Speaker:** Table, kindly cross-check.

Thank you, Hon Member.

Page 25...26?

Hon Members, the *Votes and Proceedings* of Monday, 16<sup>th</sup> February, 2026, as corrected is hereby adopted as the true record of proceedings.

Hon Members, I have the *Official Report* of Tuesday, 10<sup>th</sup> March, 2026, for your correction. Hon Members, any corrections?

Yes, Hon Member?

**Mr Afriyie:** Mr Speaker, may we turn to column 111, the third paragraph, specifically the fifth line, which reads: "...Environmental Protection Agency..." I think the House has accordingly taken steps to, as it were, convert the word "Agency" into the word "Authority." So, if we could delete the word "Agency" and insert "Authority."

**Mr First Deputy Speaker:** Thank you.

Table, crosscheck. Any further corrections?

Hon Members, the *Official Report* of Tuesday, 10<sup>th</sup> March, 2026, as corrected is hereby adopted as the true record of proceedings.

We also have the *Official Report* of 11<sup>th</sup> March, 2026 for correction. Hon Members, any corrections?

*[No correction was made to the Official Report of Wednesday, 11<sup>th</sup> March, 2026.]*

**Mr First Deputy Speaker:** Yes, Hon Members, with your permission, I acknowledge the presence of students from Kuntanase Basic School, led by Mr Joseph Taylor, the Constituency Deputy Secretary. They are from the Asikuma/Odoben/Brakwa Constituency and are 69 in number.

*[Pupils of Kuntanase Basic School were acknowledged.]*

**Mr First Deputy Speaker:** We have the ASDA Learning Centre, led by Mr Joseph Akomaning, the Assistant Head Teacher. They are from the Adentan Constituency and are 66 in number.

*[Students of ASDA Learning Centre were acknowledged.]*

**Mr First Deputy Speaker:** Then, we have Youth Impact Parliament, led by Mr Jones Amegashi Viglo and Mr Adam Usman, Presiding Officers. They are from the Ho Central Constituency and are 60 in number.

*[Delegation of the Youth Impact Parliament were acknowledged.]*

**Mr First Deputy Speaker:** Then, we have Dago M/A Basic School, led by Addo Godfred, the Assistant Headmaster. They are from the Akuapem South Constituency and are 61 in number.

1:23 p.m.

Hon Members on your behalf, I welcome all of them to the Parliament of the Republic of Ghana and urge them to have a fruitful visit. Kindly resume your seats.

*[Students from Dago M/A Basic School were acknowledged]*

**Mr First Deputy Speaker:** Yes, Majority Chief Whip?

**Mr Rockson-Nelson Etse Kwami Dafeamekpor:** Mr Speaker, we want to take the item numbered 9 and lay the Report from the Committee of the Whole regarding the proposed formula for the District Assemblies Common Fund (DACF).

**Mr Jerry Ahmed Shaib:** Mr Speaker, we are not opposed. The only thing is that I was hoping that since the Deputy Minister for Food and Agriculture is here, we would rather have taken the Questions, or is he not willing to respond to the Questions? No, he should not. He is holding a position. He is the Deputy Minister for Food and Agriculture. He has the capacity to deal with issues against the backdrop that the *Nkokɔ Nketenkete* project is becoming a façade. It has become a problem; it is reported—

**Mr First Deputy Speaker:** Hon Shaib, there is no indication before the House that the Deputy Minister for Food and Agriculture is incapable of answering the Questions.

**Mr Shaib:** Mr Speaker, I never said so.

**Mr First Deputy Speaker:** The issue is, that Question is there for him to come and respond to but the application is to vary the Order of Business to lay the Report of the Committee of the Whole.

**Mr Shaib:** Mr Speaker, master speak, thy servant heareth. We are not opposed to same.

**Mr First Deputy Speaker:** Very well. Item numbered 9, at the commencement of Public Business, Presentation of Papers by the Chairperson of the Committee. Hon Members, I am the Chairperson of the Committee but in the circumstances, I cannot be the one to lay so I would request the Deputy Majority Leader to then lay the Reports on the formula.

## PAPER

*By the Deputy Majority Leader (Mr George Kweku Ricketts-Hagan) on behalf of the Chairperson of the Committee—*

Report of the Committee of the Whole on the Proposed Formula for Distributing the District Assemblies Common Fund (DACF) for the Year 2026.

**Mr First Deputy Speaker:** Hon Members, the Report has been duly presented and it is for distribution to the Hon Members of the House.

Yes, any other indication?

**Mr Dafeamekpor:** Mr Speaker, we intend to suspend Sitting and reconstitute to a Committee of the Whole to consider the DACF formula. My information is that the Administrator is doing some work in the Western North Region. So, the Minister himself would come and

lead it. So, I am in your hands. Mr Speaker, let us suspend for 30 minutes.

**Mr First Deputy Speaker:** The application is to suspend for 30 minutes so that we can come and reconstitute to the House into a Committee of the Whole in order to take the formula.

**Mr Shaib:** Mr Speaker, I do not think I have to oppose to the application. The practical aspect is that out of the 189 Members on their Side, we can see clearly that my Colleague and Senior is suffering. Mr Speaker, calling the 189 Members to even come is a problem. They are not up to 20. What is happening? Are they not still appreciating their own 24-Hour Economy? What is this? They would then mount unnecessary pressure on us when we are about to go on recess. What is happening?

Mr Speaker, I was trying to make an indication. Same thing, the Minister for Local Government, Chieftaincy and Religious Affairs as well as his Deputy are not around. The DACF Administrator is not around. We have the Deputy Minister for Food and Agriculture who is around and we have issues with *nkoko nketenkete*. It has been reported by *Citi FM*, this is a government that once dealt with *akonfem*, that we never found and they have come back to deal with *nkoko nketenkete*. God is watching, I am giving them notice—

**Mr First Deputy Speaker:** Hon Shaib, with all due respect, I think you are out of order. The application is to suspend Sitting for 30 minutes. So,

without any opposition to the application the House is accordingly suspended for 30 minutes.

1:29 p.m. — *Sitting suspended.*

2:20 p.m. — *Sitting resumed.*

**Mr First Deputy Speaker:** Hon Members, welcome back from suspension.

Yes, Majority Chief Whip?

**Mr Dafeamekpor:** Mr Speaker, I pray that we take the Report of the Committee on Education on the *Order Paper Addendum*. Mr Speaker, while we wait for the *Order Paper Addendum*, I pray that the House constitutes into a Committee of the Whole, so that we can complete the discussions on the adoption of the DACF formula.

**Mr First Deputy Speaker:** Very well. Yes, available Leader, the application is for the House to constitute into a Committee of the Whole to look at the pending formula for the DACF.

**Mr Akwasi Konadu:** Thank you, Mr Speaker.

Mr Speaker, I still do not find the Administrator of the DACF here. Though the Minister is here, it is important that we have the Administrator here since it is a constitutional body. So that in considering the formula, whatever contributions and suggestions that we make could be factored in when—

**Mr First Deputy Speaker:** Hon Member, you were here when we constituted into a Committee of the Whole on the same subject matter.

**Mr Konadu:** Yes, Mr Speaker.

**Mr First Deputy Speaker:** We looked at the formula and raised some issues. So how they addressed those issues is what they are coming to communicate to the House before we give the approval. That was the decision at the last Committee of the Whole. We looked at the formula in principle and we asked them to go and do certain things about the formula. So, those things that we asked them to do as a condition for approving the formula is what they are here to communicate to us. Once we are satisfied that they have done it, we will then go ahead and approve the formula. So, it is not a new discussion on the formula.

Yes, Majority Chief Whip?

**Mr Dafeamekpor:** Mr Speaker, just to add to what you have said, we actually constituted an ad hoc Committee to assist the Minister and the Administrator in reconsidering the draft formula that they brought. We have finalised that discussion and submitted a new one, and it is that Report that the Minister will present to the Committee of the Whole. So, it is a continuation of what was actually suspended last week.

**Mr First Deputy Speaker:** Hon Akwasi Konadu, I appreciate your

concern, but you can speak to Hon Kwabena Okyere Darko-Mensah. I think he was at a meeting the other time.

**Mr Kwabena Okyere Darko-Mensah:** Yes, Mr Speaker. I believe that it is important we meet and look at the issues now.

**Mr First Deputy Speaker:** The House is accordingly constituted into a Committee of the Whole.

2:26 p.m. — [*The House constituted into a Committee of the Whole.*]

3:16 p.m. — *Sitting resumed.*

**Mr First Deputy Speaker:** Majority Leader, do we take the Motion numbered 10?

Hon Members, as the Chairperson of the Committee of the Whole, I should be laying the Report and moving the Motions, but in the circumstances, I would rather call on the Majority Leader to do so.

So, Majority Leader, you may move the Motion numbered 10.

## MOTIONS

### Suspension of Standing Order 104(1)

**Majority Leader (Mr Mahama Ayariga) on behalf of the Chairperson of the Committee:** Mr Speaker, I beg to move:

That notwithstanding the provisions of Standing Order 104(1) which require that a Motion shall not be debated until at least two sitting days have elapsed

after the notice to move the motion is given, the motion for the adoption of the Report of the Committee of the Whole on the Proposed Formula for Distributing the District Assemblies Common Fund (DACF) for the Year 2026 may be *moved* today.

**Mr First Deputy Speaker:** Motion moved, any seconder?

**Minority Leader (Osahen Alexander Kwamena Afenyo-Markin):** Mr Speaker, the Motion is praying this House to waive the required days of notice. May the Majority Leader tell us why this Motion is necessary.

**Mr Ayariga:** Mr Speaker, we need two days' notice and after two days, we will be going on recess. On the second day from today which will be Thursday, and on that Thursday, there is a proposal to take a certain Motion relating to the Bank of Ghana. I thought that it would be convenient to create space for the Thursday Motion by taking the Common Fund Formula today. But if there is an understanding that we do not need to take a Motion on Thursday, I do not mind. I can wait until Thursday, and then we will take the Formula. *[Laughter]*

**Osahen Afenyo-Markin:** Mr Speaker, there is blackmail. *[Laughter]* Mr Speaker, I second the Motion.

*Question put and Motion agreed to.*

*Resolved accordingly.*

**Mr First Deputy Speaker:** Hon Members, we will move now to the substantive Motion numbered 11.

## **Proposed Formula for Distributing the DACF, 2026**

**Majority Leader (Mr Mahama Ayariga) on behalf of the Chairperson of the Committee:** Mr Speaker, I move:

That this honourable House adopts the Report of the Committee of the Whole on the Proposed Formula for distributing the District Assemblies Common Fund (DACF) for the year 2026.

**Osahen Afenyo-Markin:** Mr Speaker, I rise to second the Motion. We going to do the one on the recruitment?

**Mr First Deputy Speaker:** So, Hon Majority Leader, while moving the Motion, you have to present the Report of the Committee of the Whole.

**Mr Ayariga:** Mr Speaker, in moving that we adopt the Report of the Committee, and I urge the *Hansard* to capture the entirety of the Committee's Report as if I have explicitly gone through all of it.

Mr Speaker, the total amount that is being proposed and which we are going to adopt as the allocation for the Formula is GHC8,769,707,900 and the allocation to the various sectors is captured in pages five and six of the Report. So, I will not repeat all that.

Mr Speaker, I move that we adopt the Report.

## **Introduction**

The Proposed Formula for the Distribution of the District Assemblies Common Fund (DACF) for 2026 was

laid before Parliament on Tuesday, 17<sup>th</sup> March, 2026 by Hon George Kweku Ricketts-Haggan on behalf of Majority Leader and Leader of Government Business, Mr Mahama Ayariga, in accordance with Article 252(2) of the 1992 Constitution, sections 125(3) and 129(a) of the Local Governance Act, 2016 (Act 936), and Order 261(3)(c) of the Standing Orders of Parliament. The Hon First Deputy Speaker, Mr Bernard Ahiafor, referred the Proposed Formula to the Committee of the Whole for consideration and Report.

The Committee met with the District Assemblies Common Fund Administrator, Mr Michael Harry Yamson and other Officials of the Fund to consider the referral.

### **Reference Documents**

The Committee referred to the following statutes and documents:

- i. The Constitution of the Republic of Ghana, 1992;
- ii. The Standing Orders of Parliament of Ghana, 2024;
- iii. The Local Governance Act, 2016 (Act 936);
- iv. The Formula for the Sharing of the District Assemblies Common Fund for 2026;
- v. The Report of the Committee of the Whole on the Formula for the Distribution of the District Assemblies Common Fund for 2025;

vi. Budget Statement and Economic Policy of the Government of Ghana for the 2025 Financial Year; and

vii. Budget Statement and Economic Policy of the Government of Ghana for the 2026 Financial Year.

### **Background**

Article 252(2) of the 1992 Constitution of the Republic of Ghana mandates Parliament to make provision for the allocation of not less than five (5) per cent of the total revenues of the country to the District Assemblies Common Fund (DACF) to support the implementation of development programmes in the District Assemblies. This constitutional requirement is further reinforced by sections 126(1) and 129(a) of the Local Governance Act, 2016 (Act 936).

In accordance with these provisions, Parliament annually determines and approves the allocation to the Fund through the national budget and the Appropriation Act, after which a formula for the distribution of the Fund is developed for parliamentary consideration and approval.

### **Allocation for 2026**

Consistent with the constitutional and statutory provisions, the 2026 Budget Statement and Economic Policy of Government, as approved by Parliament, allocated five per cent of the total tax revenue of the country to the District Assemblies Common Fund (DACF) for the 2026 fiscal year. Accordingly, the 2026 Appropriation Act made provision for a total amount of Eight Billion, Seven

Hundred and Sixty-Nine Million, Seven Hundred and Seven Thousand, Nine Hundred Ghana Cedis (GH¢8,769,707,900) to the Fund.

The proposed 2026 Formula for the distribution of the Fund has therefore been developed on the basis of this allocation, and the House is respectfully requested to consider and approve the Formula for implementation during the 2026 fiscal year.

### **Principles Underlying the Formula**

The development of the District Assemblies Common Fund (DACF) Formula is guided by established principles in the selection of factors and indicators. These principles emphasise relevance, comprehensiveness, reliability, measurability, and ease of interpretation to ensure that the Formula remains transparent and practical for implementation. In selecting the indicators, priority is given to those for which data is readily available and can be disaggregated to the level of the Metropolitan, Municipal and District Assemblies (MMDAs), thereby enabling objective measurement and equitable distribution.

A key component of the Formula is the Equality Factor, which provides a basic allocation to all MMDAs. Under this arrangement, a specified portion of the Fund is shared equally among the 261 MMDAs to serve as a minimum start-up allocation before the application of other distribution factors. This ensures that every Assembly receives a guaranteed level of financial support to undertake essential administrative and developmental activities.

The Need Factor addresses disparities in access to essential services and is assessed through indicators such as health services, education services, water coverage, and tarred road coverage. Assemblies with fewer facilities or lower levels of service provision receive relatively higher allocations in order to bridge development gaps.

The Service Pressure Factor, on the other hand, accounts for population pressures arising from migration and urban growth, particularly in urban areas where public facilities are often overstretched. This factor supports affected Assemblies in maintaining and rehabilitating infrastructure that experiences heavy utilisation.

### **Sources of Data**

The data used in the development of the Formula is obtained as verified spot data from central government institutions in order to minimise the possibility of influence by the Metropolitan, Municipal and District Assemblies (MMDAs) and to prevent any falsification. Population data is sourced from the Ghana Statistical Service, with the 2025 projected population figures applied in the 2026 Formula.

Education data is obtained from the Ministry of Education and it includes information on the number of educational facilities, pupil population, and trained teacher population.

Health sector data, supplied by the relevant authorities, covers the number of health facilities such as public hospitals, clinics, health posts,

Community Health Planning and Services (CHPS) compounds, as well as the population of doctors and nurses.

Data on water coverage is sourced from both the Community Water and Sanitation Agency, which provides rural coverage figures, and the Ghana Water Company Limited, which provides urban coverage data. With respect to road infrastructure, data on tarred roads is obtained from the Departments of Urban Roads and Feeder Roads, covering both urban and feeder road networks, while highway data is excluded since the construction of highways does not fall within the responsibility of the MMDAs.

### **Summary of Proposed Weighting Scenarios for the 2026 DACF Formula**

Three proposed weighting scenarios were developed for the 2026 allocation framework, each assigning varying levels of importance to the core factors of equality, needs, and service pressure. Scenario A allocates 20 per cent to equality, 60 per cent to needs, and 20 per cent to service pressure. Scenario B increases the emphasis on needs to 70 per cent, while maintaining equality at 20 per cent and reducing service pressure to 10 per cent. Scenario C adopts a different approach by significantly increasing the weight for equality to 40 per cent, assigning 53 per cent to needs, and limiting service pressure to 7 per cent.

Within the needs component, all three scenarios distribute weight across key service delivery indicators, including health facilities relative to population, availability of health professionals, education facilities relative to population, teacher-pupil ratios, road

coverage, and water coverage. However, the proportion assigned to each of these indicators varies slightly across the scenarios, reflecting differing policy priorities in balancing infrastructure, human resources, and access to basic services.

An assessment of the three scenarios indicates that all Metropolitan, Municipal, and District Assemblies benefit from increased allocations under each option, largely due to the rise in the nominal budget. Notwithstanding this general improvement, the distributional outcomes differ. Scenario C produces the most even allocation across Assemblies, followed by Scenario A, while Scenario B results in comparatively less balanced outcomes.

In light of these considerations, Scenario C is recommended as the preferred option. Its stronger emphasis on equality allows a greater number of Assemblies to attain their highest allocation levels, thereby promoting a more equitable distribution of resources. This approach is considered more effective in addressing disparities in development and ensuring a fairer allocation of public funds across all Assemblies.

### **Allocation Statement, 2026**

The total allocation to the Fund for the 2026 fiscal year is based on five per cent of the projected total revenue for the year. Accordingly, an amount of GH¢8,769,707,900 has been allocated to the Fund for 2026, compared to GH¢7,510,000,000 allocated in 2025, representing an increase of 16.78 per cent. The detailed breakdown of the allocation is presented in the table below:

Table 1: Allocation Statement, 2026

|                                                                            | GHS 2026      | PROP<br>% | GHS 2025      | PRO<br>P % |
|----------------------------------------------------------------------------|---------------|-----------|---------------|------------|
| INSTITUTIONAL SUPPORT                                                      |               | 0.00      | 135,180,000   | 1.80       |
| NATIONAL YOUTH PROGRAMME                                                   |               | 0.00      | 45,060,000    | 0.60       |
| NATIONAL EMPLOYMENT SUPPORT                                                |               | 0.00      | 45,060,000    | 0.60       |
| NATIONAL DISASTER SUPPORT                                                  |               | 0.00      | 45,060,000    | 0.60       |
| NATIONAL PROJECTS                                                          | 166,952,441   | 1.90      | 191,550,000   | 2.55       |
| NATIONAL EDUCATION PROGRAMME                                               | 68,731,713    | 0.78      | 37,550,000    | 0.50       |
| SPECIAL PROJECTS                                                           | 98,220,728    | 1.12      | 70,000,000    | 0.93       |
| CONSTRUCTION /RENOVATION OF<br>MMDAS AND OTHER BUILDINGS                   |               | 0.00      | 60,000,000    | 0.80       |
| COMPLETION OF COURTS/RES.<br>BUILDINGS                                     |               | 0.00      | 24,000,000    | 0.32       |
| RESERVE FUND                                                               | 603,027,914   | 7.88      | 546,845,000   | 7.28       |
| DISTRESSED DISTRICTS SUPPORT                                               | 87,697,079    | 1.00      |               |            |
| CONSTITUENCY MONITORING AND<br>EVALUATION (MPs)                            | 263,091,237   | 3.00      | 225,300,000   | 3.00       |
| LOCALISED EMERGENCIES                                                      | 81,558,283    | 0.93      | 160,080,000   | 2.13       |
| GRANTS MOBILISATION PROGRAMME                                              | 90,000,000    | 1.03      |               |            |
| REGIONAL CO-ORDINATING COUNCILS                                            | 36,832,775    | 0.42      | 30,040,000    | 0.40       |
| DACF OPERATIONS                                                            | 131,545,619   | 1.50      | 78,855,000    | 1.05       |
| LOCAL GOVERNMENT SERVICE/ILGS<br>INFRASTRUCTURAL BUILDING AND<br>EQUIPMENT |               | 0.00      | 52,570,000    | 0.70       |
| MMDAS – INDIRECT                                                           | 19,293,356    | 0.22      | 27,625,000    | 0.37       |
| DRIP ADMINISTRATION                                                        | 9,646,678     | 0.11      | 8,850,000     | 0.12       |
| TRAINING                                                                   | 9,646,678     | 0.11      | 18,775,000    | 0.25       |
| MMDAS – DIRECT                                                             | 7,980,434,189 | 90.00     | 6,608,800,000 | 88.00      |
| PERSONS WITH DISABILITIES (PWD)                                            | 438,485,395   | 5.00      | 225,300,000   | 3.00       |
| CONSTITUENCY LABOUR PROJECTS<br>(MPs)                                      | 438,485,395   | 5.00      | 375,500,000   | 5.00       |
| NET MMDAS                                                                  | 7,015,766,320 | 80.00     | 6,008,000,000 | 80.00      |
| TOTAL FUND                                                                 | 8,769,707,900 | 100.00    | 7,510,000,000 | 100.00     |

## **National Projects**

A total amount of GH¢166,952,441 has been allocated for National Projects to support prioritised infrastructure and development initiatives in line with Government policy objectives. Out of this amount, GH¢68,731,713 has been earmarked for National Educational Programmes to facilitate the implementation of key educational policies and programmes within selected districts.

The remaining GH¢98,220,728 has been designated for Special Projects to support strategic or intervention initiatives aimed at addressing urgent development gaps and advancing priority policy objectives in selected districts.

## **Reserve Fund**

An amount of GH¢603,027,914 has been set aside as a Reserve Fund to support targeted interventions and address unforeseen development needs. Out of this amount, GH¢87,697,079 has been allocated for Distressed Districts Support to assist districts facing severe socio-economic and development challenges, including high poverty levels, limited access to basic services, weak local revenue capacity, and significant infrastructure deficits such as inadequate roads, schools, health facilities, and water systems. Many of these districts also experience climate risks, conflicts, disasters, and accessibility constraints.

In addition, GH¢263,091,237 has been allocated to support Constituency Monitoring and Evaluation by Hon Members of Parliament (MPs) to enable them monitor projects within their constituencies. The allocation will be shared equally among all Hon Members of Parliament and accounted for through quarterly releases supported by documentary evidence.

Furthermore, GH¢81,558,283 has been earmarked to address localised emergencies, including fire outbreaks, explosions, disease outbreaks, internal displacement, poor waste management challenges, and natural or weather-related events such as flooding, rainstorms, and windstorms.

The Reserve Fund also provides GH¢90,000,000 for the Grants Mobilisation Programme, which seeks to attract and coordinate concessional and grant resources to support high-impact interventions aligned with national development priorities and Environmental, Social and Governance (ESG) principles. The programme will prioritise climate, social, and development finance to promote environmental sustainability, inclusive social outcomes, and sound governance at the local level, while also leveraging grant resources to strengthen institutional capacity, de-risk priority projects, and support climate-resilient infrastructure.

Additionally, GH¢36,832,775 has been earmarked for the sixteen Regional Coordinating Councils (RCCs) to support their monitoring and supervisory

functions over the Metropolitan, Municipal and District Assemblies, with 60 per cent allocated for general administration and 40 per cent for the Regional Planning and Coordinating Units to facilitate monitoring and evaluation of development projects.

A further GH¢131,545,619 has been allocated to the Office of the District Assemblies Common Fund, in accordance with Section 132 of the Local Governance Act, 2016 (Act 936), to support operational activities, including compensation of employees, goods and services, research, monitoring and evaluation of MMDAs, and capital expenditure.

### **MMDAs Indirect Allocation**

A total amount of GH¢19,293,356 has been earmarked for MMDAs Indirect Allocation to support administrative and capacity development activities that facilitate effective local governance. Out of this amount, GH¢9,646,678 has been allocated to the District Road Improvement Programme (DRIP) Administration to support the operations and maintenance of the Secretariat at the head office.

The remaining GH¢9,646,678 has been designated for Human Resource Development and Training programmes, aimed at strengthening the capacity of Metropolitan, Municipal and District Chief Executives (MMDCEs), as well as staff and members of the District Assemblies, to enhance effective service delivery and local administration.

### **MMDAs Direct Allocation**

The MMDAs Direct Allocation represents the portion of the Fund transferred directly to the Metropolitan, Municipal and District Assemblies based on the approved distribution formula anchored on the equality, need, and service pressure factors. For the 2026 fiscal year, a total amount of GH¢7,980,434,189, representing 90 per cent of the total allocation, has been designated for direct transfers to the Assemblies.

Within this amount, GH¢438,485,395 has been allocated for Persons with Disabilities (PWDs) to support their socio-economic wellbeing, reflecting an increase in the allocation from three per cent to five per cent. Of this amount, 75 per cent will be transferred directly to PWD accounts in the MMDAs, while 25 per cent will be used to settle outstanding debts for infrastructure projects carried forward from 2024.

In addition, GH¢438,485,395 has been earmarked for Constituency Labour Projects undertaken by Hon Members of Parliament, with the allocation shared equally among all MPs and accounted for by the MMDAs through their monthly returns.

The remaining GH¢7,015,766,320 constitutes the Net MMDAs Transfer, which will be utilised by the Assemblies to support the provision of development infrastructure and services in accordance with the approved formula.

## Observations and Recommendations

### *Outstanding Arrears*

At its meeting with the Administrator of the District Assemblies Common Fund (DACF), the Committee discussed the issue of reported arrears in respect of the District Assemblies Common Fund for the 2024 financial year based on the total actual government revenue recorded in the National Accounts.

The Committee noted that an amount of GH¢7,332,530,591.40 remains outstanding as arrears for the 2024 fiscal year DACF allocations. The Committee, however, commends Government for taken bold steps to settle arrears relating to other statutory funds, including the GETFund and the National Health Insurance Scheme (NHIS).

The Committee therefore recommends that the Minister for Finance takes the necessary steps to settle the outstanding arrears of GH¢7,332,530,591.40 for the 2024 DACF allocations to enable the District Assemblies to utilise the funds to complete ongoing and legacy projects and support local development across the country.

### *Interpretation of the 80 per cent Policy Directive*

The Committee noted that Government policy directs that 80 per cent of the District Assemblies Common Fund (DACF) should be transferred directly to Metropolitan, Municipal and District Assemblies (MMDAs).

However, the proposed disbursement structure allocates 80 per cent to District Assemblies, 5 per cent to Persons with Disabilities and 5 per cent to Constituency Labour Projects, effectively resulting in 90 per cent of the fund being transferred to the districts. The Committee expressed concern regarding the interpretation of the 80 per cent policy directive.

The Committee recommends that Government clarifies the interpretation and application of the 80 per cent policy directive to avoid ambiguity and ensure consistency in the implementation of the DACF allocation framework.

### *Legacy and Uncompleted Projects*

The Committee observed that there is a significant number of legacy projects awarded between 2017 and 2024 which remain uncompleted, largely due to the non-payment of arrears by the Ministry of Finance. The Committee was informed that approximately 4,767 projects have been identified, of which nearly 80 per cent remain uncompleted.

The Committee noted that the existence of these stalled projects constitutes a major financial and developmental burden on government and the affected communities.

The Committee recommends that the Ministry of Finance takes urgent steps to release the outstanding arrears of the DACF to facilitate the completion of legacy projects and prevent further deterioration of already commenced infrastructure.

## Revenue Capping

The Committee further observed concerns regarding the capping of the DACF allocation under the Petroleum Revenue Management Act, 2025 (Act 1138), which limits the share of the Fund to a maximum of five per cent. This provision appears inconsistent with Article 252 of the 1992 Constitution, the Local Governance Act, 2016 (Act 936), as well as the decision in *Kpodo & Quarshie v. Attorney-General* delivered by the Supreme Court of Ghana in 2019.

The Committee therefore urges Parliament to consider appropriate steps to review and address the implications of the capping on the statutory allocation to the Fund to ensure that it fully accords with the constitutional framework governing the financing of local government.

## Conclusion

After careful examination of the Formula for the sharing of the DACF for 2026, the Committee recommends that the House adopts its Report and approve Scenario C of the Weighting Formula as the basis for sharing the amount of GH¢8,769,707,900 allocated to DACF in the Budget Statement and Economic Policy of the Government of Ghana for the 2026 Financial Year.

**Mr First Deputy Speaker:** Yes, Hon Minority Leader, this is the time for you to second.

**Osahen Afenyo-Markin:** Mr Speaker, I will second the Motion but, I want the

Majority Chief Whip to keep to his words. He promised this House. We have seen the Minister for the Interior in the Chamber. We want to know when he is going to ensure that what he told us will be done, but I second the Motion. He promised that the Minister will be here to brief the House. He is here today. Yesterday, he said there was a helicopter emergency, so he had to leave. *[Interruption]* Yes, I agree. But, today, the Minister is in this Chamber. All the Members of Parliament (MPs) here are interested in that briefing.

**Mr First Deputy Speaker:** Hon Members —

**Osahen Afenyo-Markin:** Mr Speaker, I have seconded the Motion.

**Mr First Deputy Speaker:** Yes, I know but let us keep the situation factual. Yesterday, the Minister for the Interior was here in connection with the Securities and Intelligence Agencies Bill, 2025. At the time we were going to take the Bill, there was an emergency, so he was not really here to brief the House, as you indicated.

*Question proposed.*

**Mr First Deputy Speaker:** Hon Darko-Mensah?

**Mr Kwabena Okyere Darko-Mensah (NPP — Takoradi):** Thank you, Mr Speaker. First, I think I would thank the sub-committee that was set up by the Committee of the Whole to relook at the original Formula. If we take the Formula, we can see that the equality

factor has been increased from 20 per cent to 40 per cent. I think that that is the most important thing we have been able to achieve in this House. At least now, we are sure that a lot of our deprived areas will have equality of opportunity in determining their own destinies and I believe that is key.

Secondly, if we also look at the needs factor, which has come to 53 per cent, clearly, it shows that for the current situation, we should be able to be managing each and every district in this country. Then, the seven per cent that was also allocated for service pressure, I believe that the metropolitan assemblies and the municipal assemblies should be supported. But, Mr Speaker, when we look at the Formula and the allocations to each of the districts, we can see that the metropolitan assemblies clearly have been shortchanged. So, I believe that we should make special provisions for them now, and going forward, to top up some of the metropolitan assemblies. If you take a place like Sekondi-Takoradi, we have three constituencies. If we do not top up, with time, we will start agitating for municipalities for each of the constituencies. I do not think that is what we want to do because sometimes when it is bigger, they can negotiate better with their size. Secondly, if you take a place like Kumasi Metropolis, which is about five, they also seem to have been shortchanged a little bit and same for Tema. So, I believe that we should find a way that the District Assemblies Common Fund and the Minister for Local Government, Chieftaincy and Religious Affairs do something for metropolitan assemblies now.

Mr Speaker, if you also take the Formula, we have areas like the National Projects, Reserve Funds, MMDAs and the rest. But, Mr Speaker, the Reserve Funds usually are for distressed districts. But unfortunately, if we take this same Formula, it also gives money to the National Disaster Management Organisation (NADMO). Now, we know that one of the key activities of NADMO is to support families in terms of need, like roofing sheets, mattresses and then the provision of rice and the rest. But I have never ever heard that NADMO uses this money to pay for local rice production. They are always buying imported rice and I believe that we should take a firm decision this time based on your directives to stop NADMO from buying foreign rice to distribute because the local rice, as we all know, have been produced in large quantities and they are sitting in shops and stores all over the country and in the farms. Mr Speaker, if we do not have a positive policy action to force NADMO to be procuring from local farmers, I believe that we will not be doing ourselves any good in this country.

Mr Speaker, with these few words, I believe that we should be able to be purchasing this rice that have been stored in all the locations across the length and breadth of all the farms in Ghana.

**Mr First Deputy Speaker:** Yes, Hon Addo-Kenneth?

**Mr Daniel Nana Addo-Kenneth (NPP — Okere):** Thank you, Mr Speaker. I also want to commend the Committee of the Whole for

this elaborate Report. Also, I am excited, going from the comments of the Minister, that this is what Parliament ought to do.

Parliament would have the oversight and the ability to make amendments to suit the benefit of the total populace, and I am very excited about that.

3:26 p.m.

Mr Speaker, I also want to draw attention particularly to page 10 of the Report, which talks about the revenue capping. It keeps appearing, and I think that the House should take immediate steps to look at this. We are looking at fiscal decentralisation and more of it, and so once we seek to send 80 per cent of the funding to the district assemblies, more money means more development, more money going to the base.

Mr Speaker, I would want to reiterate that the Committee further observed concern regarding the capping of the DACF allocation under the Petroleum Revenue Management Act, 2011 (Act 515) which limits the share of the fund to a maximum of five per cent. What it means is that the provision appears to be inconsistent with Article 252 of the 1992 Constitution, the Local Governance Act 2016 and the decision in the *Benjamin Kpodo and Anor v Attorney-General [2019] GHASC 39;(12 June 2019)* I think that the House must take immediate steps to look at this so that there can be more money realised from the Petroleum Fund, which will mean that the district will have enough funding to execute developmental projects.

On this note, with these few words, I support the Report. Thank you.

**Majority Chief Whip (Mr Rockson-Nelson Etse Kwami Dafeamekpor):** Mr Speaker, let me add my voice to the terms of the Motion ably moved by the Deputy Majority Leader for the adoption of the Report to adopt the 2026 DACF Formula.

Mr Speaker, a key component of the consideration that we had was the arrears, which also affect the early completion of legacy projects. The legacy projects, when we actually considered them, were in excess of nearly 5,000. That is 4,767 projects. Because these projects are dotted all over the respective constituencies, they reflect the impact that the Members of Parliament make.

I am happy that the Deputy Minister for Finance is here. I want to urge the Minister for Finance to take steps to pay the arrears so that the projects can be completed, especially the legacy projects, so that the communities can use them for the purpose for which they have been set out.

Mr Speaker, with these words, I urge the House to adopt this Report to approve the Formula. Thank you for the opportunity.

*Question put and Motion agreed to.*

*Resolved accordingly.*

**Mr First Deputy Speaker:** Yes, Majority Leader, with the condition of

the Minister for Education, I am pleading that we do his Business.

**Mr Dafeamekpor:** Mr Speaker, we are praying that we take Business listed on the *Order Paper Addendum*. I have engaged extensively with the Minority Leader, and he is in support.

**Osahen Afenyo-Markin:** Mr Speaker, fortunately, the Minister is fully supported by his Deputy. So, if there are some emergencies that the Minister would have to attend to by way of medical support— The First Deputy Speaker sought the support of leadership in respect of the *Order Paper Addendum* because of the Minister's situation and I am saying that the Minister has his Deputy here. I am not the one saying it. No, I have not said that. Maybe he did not hear the First Deputy Speaker.

**Mr Ayariga:** I am saying the Minister has no situation. The real reason we will consider the Minister's business first is that he is a senior and was the Leader of the House. So, his business takes precedence over every other Minister. Unless, as a Minister, he can prove that he is a senior to him. *[Laughter]*

**Osahen Afenyo-Markin:** Mr Speaker, what the Majority Leader just did basically was to overrule you. But I would not go on the path he has taken. I will go by the path you have taken. The Minister can take leave of us. He is our senior, but he has a Deputy. So, the Deputy can stay so that we do the business of the Minister.

Mr Speaker, the Minister for Education was once upon a time a Minority Leader and he laid that

foundation for the right thing to be done. It cannot be that because of seniority, other important imperatives required of him will not be met. He knows what to do. The Minister for Education knows to brief Members properly and ensure that sufficient copies are distributed and all. They just distributed; not all Members have received copies. Then they say we should take his business.

**Mr First Deputy Speaker:** Hon Minority Leader, I plead with you that I will communicate same to the Minister who is here listening to you that sufficient copies of the Report would have to be distributed so that Members will read the report and contribute accordingly.

So, I agree perfectly with you. The Whips must take note.

**Osahen Afenyo-Markin:** Mr Speaker, the problem is the Clerks-at-the-Table. *[Laughter]* They would always delay. They just started the distribution. They are supposed to ensure timely distribution and ensure that Members get copies.

Mr Speaker, the public is watching us. Every now and then, they say Parliament rushes things. We need to go through the reports thoroughly. If they want to do it, that is their responsibility. We will not be part of it.

**Mr First Deputy Speaker:** Hon Members, at the commencement of Public Business—Presentation of Papers. *Order Paper Addendum*.

## PAPER

*By the Chairperson of the Committee—*

Report of the Committee on Education on the University of Engineering and Agricultural Sciences Bill, 2025.

**Mr First Deputy Speaker:** Yes, Majority leader.

3:36 p.m.

**Osahen Afenyo-Markin:** Mr Speaker, I just conferred with my Colleagues.

We just reached out to the Ranking Member and the Deputy Ranking Member of the Committee on Education.

Mr Speaker, I want to place it on record. According to both of them, the Chair did not give an indication that this matter would be taken today.

Mr Speaker, a committee is a Committee of Parliament made up of the Majority and the Minority. The practice has always been that the Chair will confer with the Ranking Member; this is not a one-sided House. We have just spoken to them and the Ranking Member and his Deputy are unaware. In fact, they say in the report that they have not shown them a copy of the draft report, yet they signed and they brought it to Parliament that we should take them. That is bad faith.

Mr Speaker, I beg that the proceedings on this matter be suspended. We should allow the Ranking Member and the Chair to confer. He did not inform our Side and that is the information coming from them which is most unfair.

**Mr First Deputy Speaker:** Yes, Majority Leader?

**Mr Ayariga:** *[Interruption]* Oh, no, I am not going to speak against him; I am not.

Mr Speaker, I think we can go ahead.

**Mr First Deputy Speaker:** Yes, what is the indication?

**Mr Dafeamekpor:** Mr Speaker, on the *Order Paper Addendum*, the Motion numbered 2.

## MOTION

### Suspension of Order 104 (1)

**Minister for Education (Mr Haruna Iddrisu):** Mr Speaker, I beg to move:

That notwithstanding the provision of Order 104(1) of the Standing Orders which requires that a Motion shall not be debated until at least two sitting days have elapsed after the notice to move the Motion is given, the Motion for the Second Reading of the University of Engineering and Agricultural Sciences Bill, 2025 may be *moved* today.

**Mr First Deputy Speaker:** Hon Members, Motion moved, any seconder?

**Chairperson of the Committee (Mr Peter Nortsu-Kotoe):** Mr Speaker, I second the Motion.

*Question put and Motion agreed to.*

*Resolved accordingly.*

**Mr First Deputy Speaker:** Hon Members, we then move to the consequential Motion numbered 3 on the *Order Paper Addendum*.

Yes, Minister for Education?

## **BILL — SECOND READING**

### **University of Engineering and Agricultural Sciences Bill, 2025**

**Minister for Education (Mr Haruna Iddrisu):** Mr Speaker, I beg to move that the University of Engineering and Agricultural Sciences Bill, 2025, be now read a *Second* time.

Mr Speaker, in doing so, as you may recall, far back in 2016, there was the decision by the then government to establish the University for Environment and Sustainable Development in Somanya in the Eastern Region. Subsequent to it, Mr Speaker, there was a decision in 2022. Government then got support from the Korean Exim Bank of US\$90 million to support the construction of what was referred to as the Bunso University Project, which is now properly christened the University of Engineering and Agricultural

Sciences. The President is seeking that by the end of 2026 and particularly in October this year, the school should begin admissions to admit at least about 800 students to the School of Engineering. This would be divided into two; 400 students for Engineering and 400 students for Agric Sciences.

Mr Speaker, as you may recall, the University for Environment and Sustainable Development (UESD) has even marked its fifth anniversary at its headquarters in Somanya.

Mr Speaker, by this intervention, we are seeking Parliament's support to get the University established. Policy supports that this University should have two additional campuses, one in Acherensua in the Ahafo Region and the second in Ohawu in the Volta Region. The Ohawu campus will be dedicated to Agricultural-related Sciences and innovation and the Acherensua campus will be dedicated to innovation and Applied Sciences.

Mr Speaker, it is the desire of the President that we do not just go ahead to announce and name universities. It should be preceded by minimum infrastructure requirements. So, the desire is that the Government will begin to provide some support for infrastructure in Ohawu which already has an agricultural college, in order that it will be upgraded in the future into a fully-fledged university. Same will be done for the campus in Acherensua. It will start off as a satellite campus, ultimately with the intention that it will also grow to become a fully-fledged university to serve the Ahafo Region.

Mr Speaker, it is the intention of President Mahama that each region should have a dedicated public university of its own and where necessary, an accompanying technical university to deal with it.

Mr Speaker, I recognise my predecessor-Minister who was Minister in 2022, Hon Matthew Opoku Prempeh, for getting this facility. It also means that, at a minimum, to get basic infrastructure for a university that can accommodate at least a thousand students now, we are looking at about US\$100 million.

Mr Speaker, this particular school — in fact, when I visited Bunso, I was subsequently invited by the Okyehene. It is in his traditional domain. There is a central administration block, a School of Agriculture with classroom laboratories and offices, a School of Engineering with classroom laboratories and offices, an exhibition innovation centre, a library, an auditorium, a cafeteria and accommodation, a professor and a senior staff. So, the school is ready to take off, but Parliament needs to establish the legal framework that will give birth to the university.

Mr Speaker, let me thank and assure the Hon Minority Leader that when the Committee met, we had Hon Adutwum, the former Minister for Education and his Deputy Ranking Member, Hon Yussif. I sat throughout the meeting when the Bill was being considered by the Committee, and I am sure Members will recall that the initial desire, as I said, was to establish the University of

Environment and Sustainable Development, which was located in Somanya. Now we have a new university taking off in Bunso and it is our desire as the Government to establish an additional campus of that university in Ohawu in the Volta Region purposefully for Agriculture-related courses, and Acherensua in the Ahafo Region for related Applied Sciences.

Mr Speaker, somewhere along the line, not related to this, the President has also decided that Keta will have a campus for the University of Health and Allied Sciences (UHAS), the institution responsible for applied health sciences in the Volta Region. A school of Biomedical Engineering and Pharmacology will be established in Keta as an additional campus for it.

Mr Speaker, we would seek to expand access to higher quality education. Indeed, it is also the desire of the Government that the Kwame Nkrumah University of Science and Technology— Obuasi and its surrounding area is growing faster. We are considering, subject to the advice of Dr Christine Amoako-Nuamah Committee, to hive off Obuasi to be a campus of its own. In addition, we seek to establish and redevelop the Kwadaso School of Agriculture and another one in Mampong for that purpose. But let me urge Members to support it.

Mr Speaker, the Korean Government has been very supportive of the Government of Ghana. President Mahama just returned from a diplomatic

trip to Korea and some of the economic dividends will be that President Mahama was there seeking additional funding for the University of Science and Technology to be established in Damongo and for additional funding to support the completion of the Bunso University.

Mr Speaker, I am happy to note and announce that while President Mahama was in South Korea, he managed to forge a new relationship between the University for Environment and Sustainable Development and one of the key universities in South Korea. We will continue to strengthen those bonds of partnership in order that we improve research and innovation in our country.

Mr Speaker, should Parliament support in getting this done, we will be contributing to the development of Ghana's human capital, particularly at the tertiary education level.

I so submit.

3:46 p.m.

**Mr First Deputy Speaker:** Hon Members, Motion ably moved. I will call on the Chairperson of the Committee to present the Committee's Report.

**Chairperson of the Committee (Mr Peter Kwasi Nortsu-Kotoe):** Thank you, Mr Speaker, for the Committee's Report.

## Introduction

The University of Engineering and Agricultural Sciences Bill, 2025 was laid

before Parliament on Tuesday, 17th February 2026, by the Hon Minister for Energy and Green Transition, Mr John Abdulai Jinapor on behalf of the Hon Minister for Education, Mr Haruna Iddrisu, in accordance with Order 159(3) of the Standing Orders of Parliament.

Pursuant to Article 106(4) of the 1992 Constitution and Orders 165 and 250 of the Standing Orders of Parliament, the Bill was subsequently referred by Mr Speaker to the Committee on Education for consideration and report.

In discharge of this mandate, the Committee examined the provisions of the Bill and hereby submits its report to the House.

## Deliberations

The Committee met on Tuesday, 10th March, 2026, with the Hon Minister for Education Mr Haruna Iddrisu, Hon Member for Builsa South and Hon Deputy Minister Deputy, Dr Clement Abas Apaak; as well as officials from the Ministry of Education, and the Office of the Attorney-General.

The Committee expresses its sincere appreciation to the Hon Minister and all participating officials for their presence and for the valuable insights they provided to inform the Committee's deliberations.

## Reference Documents

The Committee referred to the following documents during its deliberations:

- i. The Constitution of the Republic of Ghana, 1992;
- ii. The Standing Orders of Parliament, 2024;
- iii. The Education Regulatory Bodies Act, 2020 (Act 1023)
- iv. The Education Strategic Plan (ESP 2018-2030), 2018; and
- v. The Public Financial Management Act, 2016 (Act 921).

## **Background**

Higher education offers further training and improvement in the status of human capital in any society. In Ghana, the right to higher education is, subject to the availability of resources, a constitutional requirement that Government has to satisfy. It is the duty of Government, therefore, to invest in the establishment of universities in order that higher education is, to the greater extent possible, made available to all citizens.

University education has since independence remained largely accessible to a very small segment of the Ghanaian society. The introduction of the free senior high school education would soon impact on university education. There is therefore the need to establish more places of higher education in the country in order to accommodate the increasing number of graduates from the senior high schools.

Government every year allocates huge resources to the public universities for the performance of their functions.

Recognisably, public universities are semi-autonomous educational institutions. However, since the public universities depend hugely on public finance there is the need for greater accountability in the utilisation of resources allocated to the public universities. Transparency, accountability and efficiency depend on a well-structured governance architecture and legal framework that will ensure consistency and commonality in the administration of public universities whilst recognising the peculiarities in the objects of the various institutions.

The Bill, thus, seeks to provide for the establishment of the University of Engineering and Agricultural Sciences and also spell out the governance structure, finance, administration and regulation of the activities of the University in a structured, harmonious and coordinated manner Object of the Bill.

The purpose of the Bill is to establish the University of Engineering and Agricultural Sciences. The Bill also seeks to provide for the governance arrangements and management of the University.

## **Summary of the Clauses of the Bill**

### **Clauses 1–4 Establishment and Aims**

Clauses 1 to 4 which are the foundational clauses of the Bill set out the legal and operational basis of the University.

Clause 1 establishes the University of Engineering and Agricultural Sciences.

as a body corporate, granting it the legal capacity to function as an autonomous institution. Clause 2 articulates the aims of the University, which include providing higher education to qualified individuals, conducting research, and fostering the application of knowledge to address the needs of Ghanaian society.

Clause 3 provides for the establishment of campuses, specifying Bunsu in the Eastern Region as the main campus with additional campuses at Kenyasi in the Ashanti Region and Acherensua in the Ahafo Region. The University is empowered to, in consultation with the Ghana Tertiary Education Commission, establish a campus in any other place that the Council determines. Clause 4 empowers the University to award and, when necessary, withdraw degrees, diplomas, and certificates, including honorary distinctions.

#### Clauses 5–12 Governance Structure

Clauses 5 to 12 focus on the governance of the University. Clause 5 establishes the University Council as the highest governing body, comprising representatives from various stakeholders, including the President's nominees, the Vice-Chancellor, members of the Convocation, and industry representatives.

Clause 6 enumerates the Council's functions, which encompass strategic planning, policy oversight, financial management, and high-level appointments. The Council is also tasked with fostering collaborations with other universities and promoting income-

generating activities. Clause 7 grants the Council general powers to act in the University's best interests, while clauses 8, 9, and 10 set out standard provisions for the tenure, meetings, and conflict-of-interest disclosures of Council members.

Clause 11 mandates the establishment of committees to support the Council's work, allowing for the delegation of specific functions. Clause 12 provides for the determination of allowances for Council and committee members, ensuring their service is appropriately compensated.

#### Clauses 13–25 Administration and Principal Officers

The administration of the University is addressed in clauses 13 to 25. Clause 13 lists the principal officers, including the Chancellor, Council Chairperson, and Vice-Chancellor, all of whom must take official oaths before assuming office. Clause 14 designates the Chancellor as the titular head of the University, with the authority to intervene in matters affecting the University's integrity and welfare.

Clause 15 outlines the circumstances under which the office of Chancellor may become vacant, including resignation, incapacitation or removal following due process. Clause 16 details the role of the Vice-Chancellor as the academic and administrative head, responsible for discipline and effective management. Clause 17 introduces the Pro Vice-Chancellor, who supports the Vice-Chancellor and attends Council meetings in a non-voting capacity.

Clauses 18 to 21 establish the Academic Board, its membership, and its functions, which include formulating academic policies, regulating programmes, and overseeing examinations.

Clauses 22 to 25 address the appointment and roles of the Registrar, Director of Finance, and other necessary staff.

#### Clauses 26–31 Financial Provisions

Clauses 26 to 31 deal with the University's financial management. Clause 26 lists the sources of funds, including government allocations, internally generated funds, grants, and donations. The Council is authorized to invest surplus funds as deemed appropriate. Clause 27 empowers the Council to borrow funds, subject to constitutional and statutory safeguards, while clause 28 mandates the establishment of an Internal Audit Unit to ensure financial accountability.

Clauses 29 and 30 provide for standard accounting, auditing and reporting procedures. Clause 31 exempts the University from certain taxes and duties, subject to ministerial and parliamentary approval, to facilitate its financial sustainability.

#### Clauses 32–42 Miscellaneous Provisions

The final section of the Bill, clauses 32 to 42, covers miscellaneous but essential matters.

Clause 32 requires the Council to enact Statutes to regulate appointments, contracts, and internal procedures.

Clause 33 establishes the Convocation, which serves as a forum for discussing University matters and providing feedback to the Council and Academic Board.

Clause 34 introduces the Matriculation Oath for students, making it a prerequisite for graduation.

Clause 35 mandates the holding of Congregations for the conferment of degrees and certificates.

Clause 36 provides for the establishment of a Students' Representative Council to advocate for student interests.

Clause 37 vests intellectual property rights in the University for works funded or undertaken using University resources. Clause 38 enshrines academic freedom, while clause 39 prohibits discrimination on various grounds. Clause 40 establishes the Appeals Board to deal with issues of disputes in the university, including matters affecting staff. Clauses 41 and 42 provides for the interpretation of words and phrases used in the Bill, and transitional arrangement respectively.

### **Observations and Recommendations**

The Committee made the following observations during its deliberations:

#### **Inclusivity and Governance Structure**

The Committee observed that Clause 5 of the Bill appropriately enhances the inclusivity and representativeness of the

University Council by clarifying categories of stakeholder representation and aligning student representation with recognised national student bodies, such as the National Union of Ghana Students (NUGS). This amendment promotes participatory governance and institutional legitimacy and aligns the University of Engineering and Agricultural Sciences with governance practices in other public universities.

### **Institutionalising University-Industry Collaboration**

The Committee recognised calls for stronger institutional linkages between academia and industry. It recommends that the Bill include a provision mandating collaboration with industry to promote innovation, improve graduate employability, and align research output with national development priorities.

### **Alignment with National Policy on Tertiary Education**

The Committee took note of the Government's broader strategy to expand tertiary education, including the establishment of new public and technical universities. In light of this, it recommends that the University of Engineering and Agricultural Sciences Bill, 2025 be aligned with national policy to avoid duplication of roles, support the equitable distribution of academic resources, and contribute meaningfully to the expansion agenda.

### **Specialised Focus on Science, Engineering, and Agriculture**

The Committee commends the specialised thematic focus of the

proposed university on Engineering and Agricultural Sciences. This orientation aligns strategically with national development priorities and the critical demand for science, technology, engineering, and mathematics (STEM) graduates in an increasingly technology-driven global economy.

The Committee observes that a dedicated institution in these fields will produce a pipeline of skilled graduates equipped to drive innovation, enhance productivity, and catalyse economic transformation.

### **Decentralisation of Tertiary Education Infrastructure**

The Committee noted with approval the geographic spread of the University's campuses. The designation of Bunsu in the Eastern Region as the main campus, with additional campuses at Kenyasi in the Ashanti Region and Acherensua in the Ahafo Region, represents a deliberate policy of decentralising tertiary education infrastructure.

This spatial distribution will bring higher education opportunities closer to underserved communities, stimulate local economic development in the host communities, and ease pressure on accommodation and social infrastructure in major cities.

### **Proposed Amendments**

During its deliberations, the Committee proposed the attached amendments to strengthen the provisions of the Bill.

## Conclusion

The Committee, having carefully examined the University of Engineering and Agricultural Sciences Bill, 2025, finds that the Bill is both necessary and timely. It establishes a modern and comprehensive legal foundation that addresses the University's current realities and future aspirations. The Bill strengthens governance structures, clarifies institutional arrangements, promotes academic freedom and inclusivity, and enhances transparency and financial accountability.

In this regard, the Committee recommends to the House to adopt and approve its Report and pass the University of Engineering and Agricultural Sciences Bill, 2025 in accordance with Article 106 of the 1992 Constitution.

Respectfully submitted.

*Question proposed.*

**Prof Kingsley Nyarko (NPP — Kwadaso):** Mr Speaker, I am grateful to you for the treasured space to add my voice to the Bill before us, University of Engineering and Agricultural Sciences Bill, 2025 to be located at Bunso in the Eastern Region.

Mr Speaker, I remember in the year 2024, the previous administration wanted to establish four new universities, of which this institution was part. In fact, I led the team to Koforidua to look into establishing these four universities. One was supposed to be at

Akrodie, Mampong, Kintampo, and Bunso. Interestingly, I remember the current Chairperson of the Committee on Education was the Ranking Member and Dr Clement Apaak was the Deputy Ranking Member. They opposed this. They would not even allow me to go into the Bills.

Mr Speaker, we will support it. We will support it because if you look at the Education Sector Plan 2018 to 2030, we are talking of having a gross tertiary education enrolment ratio of 40 per cent by 2030. The more we establish universities in this country, the better for us to achieve that goal, making education diverse for all and sundry.

Mr Speaker, I will support it. I am happy that the Minister in his comments, indicated that the Kwadaso Agricultural College, which is one of the finest with enhanced infrastructural facilities, will be considered so that it is upgraded to be a full-fledged university if possible. I trust the Minister that he will be able to do it.

Mr Speaker, looking at the Report, two issues are striking. Number one is that this University is going to have a specialised focus on science, engineering, and agriculture. Looking at our economy at the moment, I think we need that. We need to train more students in the area of science, engineering, and agriculture. It is very important. Mr Speaker, before we can create meaningful jobs for our teeming youth, we must be intentional on these areas of focus. If we are able to, I think it will help us.

Again, the Report also talks about the need to strengthen the collaboration of industry and academia. This is crucial and we need it. For us to strengthen a strong industrial base, I think that it is in the right direction to have this tertiary educational institution to be located at Bunso with two other campuses.

On that score, I support this Bill and I am hoping that we will be able to expedite it for it to start meaningful and effective operations as soon as possible.

On that note, Mr Speaker, thank you once again for indulging me. I am grateful.

**Mr Joseph Kwame Kumah (NDC — Kintampo North):** Thank you, Mr Speaker. I want to add my voice to comment on this Bill. I will not say much. Normally I say “*Asempa ye tia*”, to wit, very important things are very short. We do not talk a lot. My only thing is to thank the Korean Government on behalf of H. E. John Dramani Mahama, our Minister for Education and Ghanaian people. The *Graphic Online* on 8<sup>th</sup> November, 2016, posted that the Korean Government indicated its willingness to support and now going ahead to pledge a hundred million financing of University of Education is no mean feat to commend them for. As I said, that is a very excellent thing. I will continue to thank them.

For H. E. the President’s foresight in continuing in the Free Senior High Education indirectly by creating avenues for the students to get access into universities. This is a forthright thinking Government.

Thank you very much, Mr Speaker.

**Mr Samuel Abdulai Jinapor (NPP — Damongo):** Thank you very much, Mr Speaker. I rise to support the initiative which is being very ably led by the Hon Minister for Education. Mr Speaker, I salute him for his extraordinary leadership in reforming and leading educational reforms as started by the Akufo-Addo administration. I think it is highly commendable. Clearly, higher education has been progressing from government to government, from President Rawlings’ Government when the very transformative University of Development Studies was established in northern Ghana. Mr Speaker, all through the years where we have had multiple universities established.

Mr Speaker, I am particularly excited and encouraged by the target areas this University seeks to focus on, which is engineering and agricultural sciences. Mr Speaker, Science, Technology, Engineering and Mathematics (STEM) has become the established bedrock on which nations are seeking to develop. Science, technology, engineering, and mathematics, has become the major pillar on which countries are seeking to have transformation. Indeed, a lot has already been done in that area, which is why engineering and agricultural studies is very much welcome.

Mr Speaker, let me conclude by indicating that not long ago, we were informed that a university was to be established in the Savannah Region, specifically in Damongo. Mr Speaker,

we were told that a US\$30 million grant is being secured from the Chinese Government, and a university is going to be established in Damongo, the capital of Savannah Region. Mr Speaker, if you allow me, the Savannah Region is about one of the only regions without a university.

3:56 p.m.

Indeed, this intervention came as a very refreshing and welcomed news. The people of Damongo and Savannah Region are looking forward to it with a lot of upbeat and excitement. I see that the Minister has brought this Bill before Parliament, and it appears that this particular university is gathering a lot of momentum. I will be very happy if some attention is paid to the Damongo University bit, because that is so important to the good people of Savannah Region and the good people of Damongo, and as the Minister for Education can very well agree with me, very important to my good self.

I have been following up with him, and every time I meet him, I remind him that our university is so dear to us, and he should try and work towards it, especially since he is also a friend of Savannah Region. With these words, I support the Motion moved by the Minister for Education.

Thank you very much.

**Alhaji Collins Dauda (NDC — Asutifi South):** Thank you very much, Mr Speaker. I also rise to add my voice

to the Hon Members who spoke earlier who have supported this Bill.

Mr Speaker, my support is based on the fact that in the Ahafo Region where Asutifi South is and where I come from, there are several Senior High Schools (S.H.S.). I can count as many as 20 S.H.S., all producing students ready to access tertiary education. Unfortunately, we do not have a university in the region, and President Mahama has committed to establishing a university in all the new regions.

Therefore, this university comes with good news for the people of Ahafo, because one of the campuses of the university to be established will be at Acherensua, which is in my Constituency. It is my view that this campus will serve the people of Ahafo as a starter, with the hope that in future we would upgrade it to become a full university as the Minister has committed to.

But, Mr Speaker, the other thing I wish to raise is the fact that as we establish these universities and churn out graduates from the universities, with the numbers that we churn out year after year, as a nation, it is my view that we sit and plan how we can provide jobs for these university graduates upon completion. It is a threat to governance in this country. It is a threat to democracy in this country. Some conscious effort must be put in place to ensure that job opportunities are created to absorb these graduates upon completion of the universities.

With these few remarks, Mr Speaker, I support the Motion with all my weight and hope that Members will support and get it passed.

**Mr Daniel Nana Addo-Kenneth (NPP — Okere):** Thank you, Mr Speaker. I would also like to add my voice in supporting this Report. I am very excited to say that in 2022, during the inauguration of the construction of this university, I was personally there. I am very happy.

Mr Speaker, it will interest you to note that I was a Social Studies teacher. One key thing in one of the subjects that we teach our students was “Mistakes that Ghana did after Independence”. One of it was having our educational setup to be more theoretical than practical.

As we move forward, we tend to increase the humanities subjects in our technical institutions. One of such was Kwame Nkrumah University of Science and Technology (KNUST), which was supposed to be a school that taught purely science subjects. But because of the need for these universities to raise resources, I would only urge that as we begin, we will maintain this focus in terms of making sure that truly it is purely going to be in the sciences, engineering, and agricultural studies.

Mr Speaker, I would also want to urge the Minister that as we talk about job creation, we have a lot of State farms dotted across the district. I can cite Kwamoso State Farm, which is in Akuapem North and Okrakwadwo State

Farms. When we were young, they used to have oil palm plantations and other plantations. If we go back to see the state of these State farms, firstly, it is non-functional, and secondly, it is turning to residential areas, and this is very disturbing.

As we are going to produce students into engineering and agriculture, we should be able to have spaces for them to even practise and also have their own entrepreneurship production in terms of agriculture. So, I want to urge that, as a House, the Minister for Education and the Minister for Food and Agriculture would start looking at these State farms that have been left and are practically doing nothing.

As we talk about food security and capacity building in these areas, it will be an interesting area for the students that we are going to enrol to practice in. Not only them, but the University of Ghana, School of Agricultural Sciences. I lived around Ashiyie. In those days, they produced local yoghurt and milk. We are talking about job creation and 24-hour economy. So, what I want to say is that I am very excited that four years down the lane, we have seen the continuation of this university, and finally, we are going to see recruitment into this university.

This is one of the projects that has been timely. At the time, it was mentioned that the first batch of admitted students would be in October 2026, and that was some four years back. We are here today, ahead of our schedule, to approve the Bill.

So, with these few words, I would want to commend the Minister for Education, the Committee, and also to add my voice to their support of this Report.

**Mr Jerry Ahmed Shaib (NPP — Weija/Gbawe):** Thank you very much, Mr Speaker. As I rise to add my voice to this Motion, let me first commend the Minister for Education for reconsidering the earlier initiative by the previous Nana Addo Dankwa Akufo-Addo and Dr Mahamudu Bawumia government, and the need to ferry this Bill to this hallowed Chamber.

As Prof Nyarko said, this Bill was originally brought and my Friend, now the Deputy Minister, who vehemently opposed the laying of the Bill in 2022. By God's grace today, we have this opportunity to have the Government of today rebrand the same institution, and bring it for consideration. Whilst at that —

**Mr First Deputy Speaker:** Hon Members, ordinarily I would not call the Majority Chief Whip, but certain things have been said. I was also a member of the Committee on Education at that material moment, so I will give him the floor.

**Mr Dafeamekpor:** He is not only my colleague Leader but he is also my brother. I am the godfather of his son. He knows that on grounds of Order 122—*[Interruption]*—I know and that is why I am going about it in that way. He was not here in 2022. The Deputy Minister was then the Deputy Ranking Member, so he

should withdraw that part. He has a way that he can make that point without saying it the way he did. So, he should withdraw that portion and let us make progress.

4:06 p.m.

**Mr Shaib:** Mr Speaker, while we are before you in this Chamber, there is something critical that we have to look at from the Report. With your permission, if I may read the second paragraph of the background, which says:

“University education has since independence remained largely accessible to a very small segment of the Ghanaian society. The introduction of the free senior high school education would soon impact on university education.”

Mr Speaker, what we are trying to do is to understand that the free senior high school has come to stay, and it has been very beneficial to each and every one who has found a reason to continue education to the university level. Mr Speaker, do you know the good part about this University? It is a university that is going to deal with Engineering and Agricultural Sciences. My interest is in the Agricultural Sciences.

Mr Speaker, recently I had the opportunity of being in Barcelona, and I learnt a lot with reference to Information Technology (I. T.), and the use of Artificial Intelligence (A. I.). My view is that if we are going into Agricultural Sciences, are we considering integrating AI, mechanisation or modern ways of

farming? If that is the case, which I believe is one of the reasons we are discussing this Bill, then we ought to advise people to sink boreholes in cocoa farms. Mr Speaker, there is also the consideration for us to think thoroughly about our own projects. We should get farmers well-educated so that the Nkoko Nketenkete Programme will come to stay, and it will not be just a campaign promise and noise out there. This is because if we are able to learn the lessons from the Akonfem Project —

**Mr First Deputy Speaker:** Please keep to Order 127.

**Mr Shaib:** Mr Speaker, I am guided. The point is that AI is the order of the day. The essence of this University would afford students a lot of new forms of learning, especially in farming and agriculture as a whole. If we are able to adopt such measures, there is a need for us to know that when we are farming, we farm with ease. We would use the right products and the right farm techniques. Therefore, this is the right time to reintroduce this Bill and to ensure that it goes through all the stages for it to be passed.

Mr Speaker, I rest my case and thank you very much.

**Mr First Deputy Speaker:** Deputy Minister, you have the floor.

**Deputy Minister for Local Government, Chieftaincy and Religious Affairs (Ms Rita Naa Odoley Sowah):** Thank you, Mr Speaker, for the

opportunity to contribute to the Motion and the Report by the Committee on Education on the establishment of the University of Engineering and Agricultural Sciences. I wish to commend H. E. John Dramani Mahama and the Minister for Education, Hon Haruna Iddrisu, for this great initiative.

Mr Speaker, we all recall that H. E. John Dramani Mahama has made university education or tertiary education free for persons with disabilities. I want to appeal to the Minister that we should ensure that whatever facilities are going to be constructed at these campuses should be disability friendly. And I believe that as they go to school for free and the facilities are disability friendly, it is going to help them in their studies.

Thank you very much for the opportunity.

**Osahen Afenyo-Markin and Dr Adutwum — rose —**

**Mr First Deputy Speaker:** Hon Minority Leader, I thought you seconded the Motion. Alright, I will give you the floor. Do you want to yield to your Ranking Member? But practically, let us see what happened in the House, you will be the fifth person to speak from your Side, so if you add it up, it would be 10 Members debating the Motion. That is why I am asking whether you want to yield to him.

**Mr Dafeamekpor:** Mr Speaker, let me plead that, being who he is, let him have a bite, but limit him to five minutes,

then we can take the Minority Leader and end it. This is because of the role he played in his past life. *[Laughter]*

Thank you, Mr Speaker.

**Dr Yaw Osei Adutwum (NPP — Bosomtwe):** Mr Speaker, thank you for the opportunity. Mr Speaker, I heard you say that you were part of the Committee, and I also happened to be the Minister for Education at the time. I am grateful to Nana Addo Dankwa Akufo-Addo for giving me that opportunity to lead a charge in the establishment of the University. I remember the day we went to inaugurate and began looking at how this University can come alive. I am also grateful to the Minister for Education for not changing the name of the University. The name that was given to it in the Bill that was coming before this House is the name that has been maintained, and I am grateful to him. I also want to say that this is all about continuity. Continuing this and going there to make sure that we can open this school is something I want to commend my Colleague for. But today is a very good moment for all of us as a nation that we are going to have a university that will lead the charge in Science, Technology, Engineering, and Mathematics (STEM) education and continue to do more for this country. I am very grateful to the Chairperson and Members of the Committee who helped with this effort.

Thank you, Mr Speaker.

**Osahen Afenyo-Markin:** Mr Speaker, let me thank you for the opportunity to add my voice to this

important legislation. As my Colleagues have said, my duty is to sum up the views of the Minority on this important Bill. Mr Speaker, the Minority stands in support of the principles of establishing the University of Engineering and Agricultural Sciences. Our country's development future depends on engineering capacity, agricultural innovation, and technical expertise, and we are proud to have championed access to higher education across this Republic. But Mr Speaker, support for a principle is not a blank cheque for a flawed Bill. It is precisely because we want this University to succeed that we stand here today to demand it to be properly constituted, properly funded, and properly accountable.

Mr Speaker, why do we raise concerns in spite of our support for the Bill? One, not too long ago, we were informed that His Excellency the President had assured the people in the Volta Region, particularly those in the enclave where Ohawu Agricultural College is situated, that it was going to be upgraded to a full university with the necessary legislation. Mr Speaker, we also had a Statement from Hon Edem Agbana, in which a referral was made to the Committee on Education to consider and report for further referral to the Ministry of Education. Mr Speaker, having gone through the Report and the Bill itself, I do not see anywhere that Ohawu Agricultural College is mentioned. However, in the Minister's submission, he indicated that Ohawu Agricultural College is going to be one of the campuses. But Mr Speaker, the Report does not capture that. More so,

the Report is saying that there would be only three campuses as indicated in the original Bill, and any other campus would have to be approved by the Ghana Tertiary Education Commission (GTEC).

Mr Speaker, there are two issues here: one, the safe landing that the Minister for Education is providing is not captured. Two, the issue is not about making Ohawu Agricultural College a campus; the issue is about the assurances given to the chiefs and the people in that part of the Volta Region where Ohawu Agricultural College is.

We need to create a space for economic growth.

4:16 p.m.

Mr Speaker, in creating that space for economic growth, we are not only looking at the student population, but the entire value chain. The day this Statement was made, my dad an 82-year-old man, was very happy. Because he was one of the early students who trained in that College; he was later sent to Modena for agricultural mechanisation training. But to hear from the Minister for Education that it would be a campus and even that is not captured. This would beg a very huge question for an answer. I therefore would want the policy to be reconsidered.

Mr Speaker, that said, the respected Alhaji Collins Dauda made a very profound Statement, and I do not want it to just remain the way it is. First, I adopt that aspect of his contribution as though they were mine and at the risk of adding

to the superfluity of that Statement, let me say a few things.

Mr Speaker, oftentimes, we initiate, but we forget about the value chain which is the end product. We have so many universities in Ghana; I am not against establishing universities, but what practical policies do we put in place for job creation? Alhaji Collins Dauda could not have said it better.

Mr Speaker, there is a huge national security threat. Yesterday, I met a 70-year-old man at the Achimota Golf Course and he said to me “Alex, can the political leaders not sit down and agree on the core national issues such as education and health? Can they not focus on these two and benefit from its positive effect in job creation and the private sector? Each one of you come in for four years and think of how to undo the other in terms of policy.

Mr Speaker, what has become of the National Development Planning Commission? Two weeks ago, when I had the opportunity of addressing a gathering on centrism, it was one of the issues I addressed. The National Development Planning Commission is there and it is toothless. We, the political leaders, have turned it into a partisan body. It is not supposed to be so. Our partisan manifesto must find expression in that national policy and any political party must subscribe to that national policy.

Mr Speaker, that would mean having practical steps embedded in the policy for job creation. The over 506,000 youth, who are graduates and bought the forms

for the security services recruitment, should be of worry to us. Colleagues, please—[*Interruption*—establishing this University would lead to educating our people, but would it lead to creating jobs?

Mr Speaker, let us take Switzerland for example. Switzerland, as a country, has a policy which encourages apprenticeship. I am not against university education. Because we live in a fluid media environment, I am very careful how I put this, so that somebody will not go somewhere and say Osahen Afenyo-Markin or the Minority are against establishing universities and do not want many Ghanaians to benefit from university education. No. But at the heart of the job market is technical education and vocational training. There is nothing wrong with calling it an engineering institution.

Mr Speaker, there is a huge space where our youth lack technical education. We are investing in formal education, helping our children to earn white-collar job certificates. So, he has a degree and he looks down on some apprenticeship that would have even created opportunities for him. I think the policy should be broader. I am happy the Minister for Education is here. We are making a huge mistake. We complain about *galamsey*, but a lot of them are frustrated. It is a serious national security threat. This is not a period for partisanship. It is about our country, Ghana, and the policies that we enact and implement as a people.

We have been elected to a privileged situation. The people have a high expectation. The nature of the world of

today, they know more than we think we know. We may be taken by surprise someday, maybe soon. Ladies and gentlemen, when that day comes, it would not know the New Patriotic Party (NPP) or National Democratic Congress (NDC). When that day comes, there will be no distinction between NPP and NDC.

I am taking advantage of this opportunity to urge upon us that while we create the opportunity for education, let us equally be serious about what would create the jobs, support the private sector, create opportunities for those who would want to go into industry, focusing on technical and vocational education and making apprenticeship attractive. So that, there would be equity and balance. Somebody who has the knowledge will not necessarily say that I would attend a university for a degree, to become somebody in society.

But someone who goes to learn welding, learns it well and goes through a period of training would be proud of being a welder because his bread will be buttered as a welder. Rather than churning out a lot of graduate degree holders, in the system who would not want to go into any apprenticeship because they have a degree. Meanwhile, the opportunity is in technical training.

Mr Speaker, I would conclude by saying that in Ghana today, a lot of the youth who are well skilled in vocational training from Nigeria, Togo and Burkina Faso are the ones at all construction sites. Government would say, it has created 500,000 jobs. But are those jobs ones that

Ghanaians are doing? No. Let each one of us here go to all the construction sites; if you want a mason or steel bender; they would be a Togolese. If you want a carpenter; it would be a Nigerian. Those who fix Plaster of Paris (POP) ceilings and lay tiles —

Mr Speaker, there is a huge job opportunity there. But because our people have not been trained in that area of skill, they are all chasing masters' degrees, Bachelor of Science (BSc) and Bachelor of Arts (BA). That space has gone to others who are foreigners and our people are now complaining. One day, they would say, *tsooboi* on us and we may not have anywhere to hide.

Mr Speaker, I conclude by urging upon the respected Minister for Education, who was once upon a time a Leader of this House, to take this contribution from Alhaji Collins Dauda and my good self on board and enact a policy out of these views, which is aimed at addressing technical education.

The former Minister for Education, Dr Yaw Adutwum, had taken steps in science, technology, engineering and mathematics (STEM) education. He took steps to equip over 48 vocational training institutions in Ghana; he started that project. The steps of the Minister for Education are commendable, but I urge upon him to continue that path of technical and vocational education.

He should make apprenticeship attractive and help a lot more of our children. So that, instead of chasing white-collared job certificates, they

should also chase for their trade. In Fante, it is called *nsano edwuma*. They should choose trade, so that when Government is creating jobs in construction, our people would be there. When you come to Winneba, almost all construction sites are being taken over by foreigners. They are trained. Togolese have invested in vocational and technical education. In Nigeria, there is a lot of investment in vocational and technical education.

But we have invested heavily in white-collared job certificates. Even with our nurses and teachers, it is a problem. But a lot more may not want to be teachers or nurses. They cannot recruit all of them. But in the vocational and technical training sector, there are huge unlimited opportunities...

4:26 p.m.

Mr Speaker, that said, I would want to thank you for this treasured space and pray that the Minister will take these concerns on board. At the Consideration Stage, which I pray is not going to be rushed today, we, the Minority, have some few concerns that we would want to put forth to enrich this, Bill. But this Bill must not be rushed. We need time, we need to winnow so that the proper thing is done. We do not need to rush to the Consideration Stage today. We must not do that. We must winnow and look at it; the Ranking Member was not in the know. He just came, although he attended the committee meeting, this Side of the House, we also have a technical backup for our committee. We need to meet our technical advisors as a caucus, so that the necessary input could

be made to enrich this, Bill. If we want to rush it, the country will be denied that opportunity.

**Mr Dafeamekpor:** Mr Speaker, let me conclude comments from Members by thanking His Excellency the President for pursuing this matter and bringing this dream to fruition and also, the sector Minister through whose tireless efforts today we are here.

Mr Speaker, this journey was begun sometime in October and November 2016, and let the record reflect that it has taken us so long, but we are here. We also hope that this will serve as a growth pole. A growth pole simply means it has a capacity of attracting other businesses and industries to the area where the university is set up.

Mr Speaker, my understanding is that in respect of Clause 3 of the Bill, two campuses will be established in Kenyasi in the Ashanti Region, and Acherensua in the Ahafo Region but the background information is that in the course of the stakeholder engagements, a delegation of chiefs were invited to participate from the Asutifi North traditional area. So, the decision of the Ministry is that a campus of the University of Energy and Natural Resources (UENR) will be established in Kenyasi in the Asutifi North District, in the Ahafo Region. So, this university will have a campus in Acherensua and the Kenyasi is not the one in Ahafo, but Kenyasi in the Ashanti Region. However, the Kenyasi for Asutifi would be amended to reflect that it is a campus from UENR. All these traditional areas will be catered for in terms of establishment of campuses.

Mr Speaker, with this, we thank the Committee for good work done, and we hope that the consideration will be expeditiously done so that the Bill will be passed.

*Question put and Motion agreed to.*

University of Engineering and Agricultural Sciences Bill, 2025 accordingly read a Second time.

**Mr First Deputy Speaker:** Yes, Majority Leader?

**Mr Dafeamekpor:** Mr Speaker, we would want to move to Consideration Stage. The mood of the House is that we proceed with the Consideration Stage.

**Mr First Deputy Speaker:** Hon Members, as we engage, permit me to acknowledge the presence of our pupils from Bisease Catholic Primary and KG, led by Robert Mensah, a teacher. They are from Ajumako/Enyan/Essiam. They are 67 in number. Hon Members, on your behalf, I welcome them to Parliament and urge them to have a fruitful visit. You may kindly resume your seats.

*[Pupils of Bisease Catholic Primary and KG were acknowledged]*

**Mr First Deputy Speaker:** Hon Majority Chief Whip, what is the next business?

**Mr Dafeamekpor:** Mr Speaker, the proposal is that we take the Motion numbered 4 on the *Order Paper Addendum*.

**Osahen Afenyo-Markin:** Mr Speaker, I am quite sure that in my submissions, I was very unequivocal. I had expressed the views of this Side of the House on this every now and then, the penchant for rushing of Bills by the Majority.

Mr Speaker, in principle, this is a good legislation. They want to set up a university, we support them. But we are saying that allow Parliament to enrich the Bill so that when the law is passed, it will stand the test of time. The Majority Chief Whip cannot bulldoze his way through. The Minister for Education is a very respected member of this House. A lot of us took notes whenever he was speaking. We were taking notes those days and we know his love for parliamentary procedure. Mr Speaker, and above all, scrutiny. He is a master of scrutiny. How can they bring his Bill and say we should rush it today?

Mr Speaker, do not fall into that temptation. Do not fall into that temptation. It is a whole valley made up of a shadow of confusion that they want to push you into. Do not fall. Let us not proceed with this application for leave to move into Consideration Stage. In any event, they should look at their back. Look behind you. How many people, out of their 189, how many people do they have to proceed on such an important law? They are not even up to 50. They must first have the ability to motivate their back before they embark on such a part.

**Mr First Deputy Speaker:** Hon Minority Leader, my suggestion is that we should take—

**Osahen Afenyo-Markin:** Mr Speaker, I am concluding but we can be very magnanimous on this matter. They can start, because I just ferried the amendment of the caucus to the Table Office, because we are just seeing this. So, we can manage the situation.

Mr Speaker, we are not litigants. We are not obstructionists. We are constructive. They would not have their way. Majority Chief Whip, you will not have your way. With this mighty Minority, you would not have your way because you do not even have your numbers. You do not. You have nothing. You have your way. Even with recruitment, common recruitment, you cannot take care of your Members. You cannot take care of your Members. You only call them into a meeting when we strike. So, we strike so that you take care of them. That is what I am doing. You cannot take your back for granted.

Mr Speaker, we would take one or two clauses. The Minister has agreed that we would take one or two clauses. When we were few—they thought they would have their way. They would not. We would just take one or two.

**Mr First Deputy Speaker:** Motion numbered 4 on the *Order Paper Addendum*.

**Osahen Afenyo-Markin:** But they should second it themselves. We will not second. They should carry their own cross.

## MOTION

### Suspension of Standing Order 169(1)

**Minister for Education (Mr Haruna Iddrisu):** Mr Speaker, I beg to move:

That notwithstanding the provisions of Order 169(1) of the Standing Orders which requires that when a Bill has been read a Second time, the Bill shall pass through a Consideration Stage which shall not be taken until at least two sitting days have elapsed. The Consideration Stage of the University of Engineering and Agricultural Sciences Bill, 2025 may be *moved* today.

**Mr First Deputy Speaker:** Motion moved. Any seconder?

**Mr Nortsu-Kotoe:** Mr Speaker, I second the Motion.

*Question put and Motion agreed to.*

*Resolved accordingly.*

4:36 p.m.

**Mr First Deputy Speaker:** The University of Engineering and Agriculture Sciences Bill, 2025 is at Consideration Stage.

## BILLS — CONSIDERATION STAGE

### University of Engineering and Agricultural Sciences Bill, 2025

**Mr First Deputy Speaker:** Yes, Chairperson of the Committee?

Clause 1 ordered to stand part of the Bill.

Clause 2 — Aims of the University

**Mr First Deputy Speaker:** Yes, Chairperson of the Committee?

**Chairperson of the Committee (Mr Peter Kwasi Nortsu-Kotoe):** Mr Speaker, amendment proposed:

Sub Clause 1, Paragraph (c), Line 3, after “research”, *insert* “and innovation”. I so move.

**Mr First Deputy Speaker:** Hon Members, the proposed amendment is for your consideration. In the absence of any further amendment, I will put the Question.

*Question put and amendment agreed to.*

**Mr First Deputy Speaker:** Yes, Chairperson of the Committee, (ii)?

**Mr Nortsu-Kotoe:** Thank you, Mr Speaker. Amendment proposed: sub clause 2, paragraph (b), line 2, after “teaching”, *insert* “learning”.

**Mr First Deputy Speaker:** Hon Members, the proposed amendment is for the consideration of the House. Any further amendments?

Yes, Hon Boamah-Nyarko?

**Mr Isaac Boamah-Nyarko:** Mr Speaker, if I got the Chairperson of the Committee right, he said the proposal is

to insert “learning” after “teaching”. If we insert “learning” that is not correct. It should be “and learning” to read “teaching and learning”.

**Mr First Deputy Speaker:** Yes, Hon Member, you are right.

*Question put and amendment agreed to.*

Clause 2, as amended, ordered to stand part of the Bill.

Clause 3 — Campuses of the University

**Mr First Deputy Speaker:** Yes, Chairperson of the Committee?

**Mr Nortsu-Kotoe:** Mr Speaker, amendment proposed, Clause 3, sub-clause 2, paragraph (a), *delete and insert* the following:

“Ohawu in the Volta Region”

I so move.

**Mr First Deputy Speaker:** It is for the consideration of the House.

*Question put and amendment agreed to.*

Clause 3, as amended, ordered to stand part of the Bill.

Clause 4 ordered to stand part of the Bill.

Clause 5 — University Council

**Mr First Deputy Speaker:** Yes, Chairperson of the Committee, (iv)?

**Mr Nortsu-Kotoe:** Mr Speaker, proposed amendment. Clause 5, sub-clause 1, paragraph (d), sub-paragraph (v), *delete and insert* the following new paragraphs as advertised:

“The undergraduate students of the University, nominated by the Students’ Representative Council;

The post-graduate students of the University, nominated by the Graduate Students’ Association”.

I so move.

**Mr First Deputy Speaker:** Hon Members, the proposed amendment is for your consideration. I will put the Question.

*Question put and amendment agreed to.*

**Mr First Deputy Speaker:** Hon Members, kindly resume your seats so that when somebody is up to contribute, we can identify the person.

Yes, Hon Boamah-Nyarko?

**Mr Boamah-Nyarko:** Mr Speaker, I want to propose an amendment to Clause 5, sub-clause 1, paragraph (c) which states that:

“Three other persons nominated by the President, at least one of whom is a woman”.

Mr Speaker, in favour of affirmative action, I propose that at least two of the three nominees should be women.

I so move, Mr Speaker.

**Mr First Deputy Speaker:** Well, Hon Members, it is for your consideration. But for me, the existing rendition can make all the three women but the minimum is one. Even all the members of the board can be women. So that is why the expression is, “at least”. It does not mean that two of them or all three cannot be women. That is the meaning that I am gathering. So, it is just setting a minimum limit.

**Mr Boamah-Nyarko:** All right, Mr Speaker. I would abandon the proposal.

**Mr First Deputy Speaker:** Very well. Chairperson of the Committee, you may move the amendment number (v) to Clause 5.

**Mr Nortsu-Kotoe:** Mr Speaker, amendment proposed: clause 5, sub-clause 1, paragraph (d), sub-paragraph (vii), *delete* and *insert* the following new subparagraphs as advertised:

“The senior staff of the University nominated by the senior staff of the University;

Junior Staff Association of the University of Engineering and Agricultural Sciences, nominated by the Junior Staff Association of the University of Engineering and Agricultural Sciences;”

I so move.

**Mr First Deputy Speaker:** Hon Members, it is for your consideration.

*Question put and amendment agreed to.*

**Mr First Deputy Speaker:** Yes, Chairperson of the Committee, (vi)?

**Mr Nortsu-Kotoe:** Mr Speaker, amendment proposed. sub-clause 1, paragraph (d), sub-paragraph (ix), line 1, after “investee”, *insert* “who is not a member of staff of the university”. I so move.

**Mr First Deputy Speaker:** It is for the consideration of the House. Hon Members?

*Question put and amendment agreed to.*

**Mr First Deputy Speaker:** Yes, Chairperson of the Committee, (vii)?

**Mr Nortsu-Kotoe:** Mr Speaker, amendment proposed: clause 5, sub-clause 1, paragraph (d), *insert* the following new subparagraph as advertised:

“The Ministry responsible for Education not below the rank of a Director nominated by the Minister responsible for Education;”

I so move.

**Mr First Deputy Speaker:** Hon Members, it is for your consideration.

*Question put and amendment agreed to.*

Clause 5, as amended, ordered to stand part of the Bill.

## Clause 6 — Functions of the Council

**Mr First Deputy Speaker:** Yes, Chairperson of the Committee?

**Mr Nortsu-Kotoe:** Mr Speaker, amendment proposed: clause 6, paragraph (1), after “decision”, *delete* “maker” and *insert* “body” to read “decision-making body”.

I so move.

**Mr First Deputy Speaker:** Hon Members, it is for your consideration. In the absence of any proposed amendment, I will put the Question.

*Question put and amendment agreed to.*

4:46 p.m.

Clause 6, as amended, ordered to stand part of the Bill.

Clauses 7 and 8 ordered to stand part of the Bill.

## Clause 9 — Meetings of the Council

**Mr First Deputy Speaker:** Chairperson of the Committee?

**Mr Nortsu-Kotoe:** Mr Speaker, amendment proposed – subclause (2), *delete* “nine” and *insert* “eleven”.

*Question put and amendment agreed to.*

Clause 9, as amended, ordered to stand part of the Bill.

## **Mr First Deputy Speaker:** Yes?

**Osahen Afenyo-Markin:** Mr Speaker, my Brother opposite me had a discussion that in view of some intervening matters, we should do only 4 clauses. Mr Speaker, these were his words and I relied on same and informed my Side. He should not resile. This is the understanding we had. We also have some amendments. Please, Hon Dafeamekpor, this is what we have agreed, please let us be doing just that.

**Mr First Deputy Speaker:** Yes, so Hon Members, can we move to the Security and Intelligence Agencies Bill, 2025 and continue the Consideration.

**Mr Dafeamekpor:** Mr Speaker, indeed yes. We may conclude this one and take the Security and Intelligence Agencies Bill, 2025.

**Mr First Deputy Speaker:** Will we pause this one here?

**Mr Dafeamekpor:** Yes, for today.

**Mr First Deputy Speaker:** This brings us to the end of the Consideration Stage of the University of Engineering and Agricultural Sciences Bill, 2026 for today.

**Mr Dafeamekpor:** Mr Speaker, we will take item numbered 23 on the substantive *Order Paper*.

**Mr First Deputy Speaker:** Hon Members, the Security and Intelligence Agencies Bill, 2025 at Consideration Stage.

## Security and Intelligence Agencies Bill, 2025

*[Resumption of Consideration from  
16/03/2026]*

**Mr First Deputy Speaker:** Hon Members, we deferred clauses 14, 16 and 17. Has the Winnowing Committee been able to work on them?

**Mr Dafeamekpor:** Mr Speaker, no, so they will remain deferred.

**Mr First Deputy Speaker:** Very well.

**Mr Dafeamekpor:** So, we may make progress with the unconsidered clauses on this matter.

**Mr First Deputy Speaker:** Very well, so we are moving on to clause 21.

Clause 21 — Investigation of Complaints

**Mr First Deputy Speaker:** Chairperson of the Committee?

**Chairperson of the Committee (Dr Zanetor Agyeman-Rawlins):** Mr Speaker, amendment proposed — Subclause (1), paragraph (b), line 1, after Director-General, *insert* “concerned”. I so move.

*Question put and amendment agreed to.*

**Mr First Deputy Speaker:** Yes, amendment numbered (vi) in the name of

the Minority Leader, Osahen Alexander Kwamena Afenyo-Markin?

**Minority Leader (Osahen Alexander Kwamena Afenyo-Markin):** Mr Speaker, with respect, I rise to move the amendment contained in today’s Order Paper, page 21, amendment numbered (vi), clause 21. Amendment proposed — After subclause (3), *insert* the following new subclauses:

“(4) A person who is aggrieved by an act or omission of the Council or a security or intelligence agency may, in addition to any remedy under this Act, lodge a complaint with the Commission on Human Rights and Administrative Justice in accordance with Article 218 of the Constitution.

(5) The lodging of a complaint under subsection (4) shall not preclude the complainant from pursuing any other lawful remedy available under this Act or any other enactment.

(6) A security or intelligence agency shall not victimise, discipline or otherwise prejudice a person for lodging a complaint in good faith under this Act or before the Commission on Human Rights and Administrative Justice.”

Mr Speaker, I believe these our amendments are self-explanatory. The right to seek redress are far rights and very constitutional so providing an elaborate avenue for such right to be exercised is only part of fulfilling one of

the promises of the Constitution. Mr Speaker, I hold a view that these rights must not be withheld since withholding same will be amounting to denying those aggrieved their constitutional right. Mr Speaker, I do not think I have to belabour. I discussed with my Colleagues opposite me and I did not get any impression that this provision in any way goes against the introduction of these subclauses, but Mr Speaker, these are not matters for records.

4:56 p.m.

Now that the opportunity is there and they have seen the intent of my proposal, I believe that the Members of the Committee can have an opportunity to express their own views on same.

Thank you, Mr Speaker.

**Mr First Deputy Speaker:** Yes, but Minority Leader, let us look at it this way. Clause 21 is the investigation of complaints, and it reads:

“(1) A person who is aggrieved by an act or omission of a security and intelligence agency may submit a written or oral complaint to;

(a) the National Security Co-ordinator, where the complaint is against the office of the National Security Co-ordinator; or

(b) the Director-General, where the complaint is against an internal or external intelligence agency.

(2) The National Security Co-ordinator or Director-General sh

all examine the complaint and take appropriate action within thirty days after the date of receipt of the complaint.

(3) A person who makes a complaint to the National Security Co-ordinator or Director-General under this section may, where

(a) action is not taken on the complaint within the thirty days referred to in subsection (2), or

(b) the person is dissatisfied with the action taken by the National Security Co-ordinator or Director-General submit a written complaint to the Chief Justice.”

So, these are the procedures that have been spelt out. And then the Chief Justice shall, on receipt of a complaint under section 21, appoint within 60 days a tribunal of three persons to examine and determine the issue in the complaint.

Now the tribunal shall consist of a justice or a retired justice of the High Court or a lawyer who qualifies to be appointed as a justice of the High Court as chairperson and two other persons. So, if you are again saying, Minority Leader, that that particular complaint should go to the Commission on Human Rights and Administrative Justice (CHRAJ), in the order of that particular arrangement, is CHRAJ going to serve as an appeal body over the tribunal that will be constituted by the Chief Justice? Because the remedy available is that you first submit the complaint to them. If you are dissatisfied or if they did not work on it, then the complaint goes straight to the

Chief Justice. But instead, your amendment is proposing that it should go before the Commission on Human Rights and Administrative Justice.

**Osahen Afenyo-Markin:** Mr Speaker, thank you for that elaborate explanation, but let us argue in terms of Article 218.

Mr Speaker, the question is whether there is any estoppel that operates within the context of your explanation, which is to say that because of these provisions, one is completely estopped from pursuing certain constitutional rights as contained in Article 218.

**Mr First Deputy Speaker:** Yes, you can read Article 218, and you will come to a conclusion that if you carry out this amendment, it will be problematic, because the act and omission of the council may not only be human rights in nature. And then the jurisdiction of the Commission on Human Rights and Administrative Justice is limited to issues of human rights. But you are saying that if a person is aggrieved by an act or omission of the council, they should go before the Commission on Human Rights and Administrative Justice.

**Osahen Afenyo-Markin:** Mr Speaker, with respect, if you paid due regard to my amendment, I was saying that this amendment is being proposed in addition to any other remedy that is available. Yes, the Constitution, if we read Chapter 5 and the various Articles thereto, we have certain rights conferred upon us to access the courts when our

rights are being violated. The same Constitution talks about CHRAJ, and Mr Speaker, let me read what 218 says. It says:

“The functions of the Commission shall be defined and prescribed by an Act of Parliament and shall include the duty to investigate complaints of violations of fundamental rights and freedoms, injustice, corruption, abuse of power and unfair treatment of any person by a public officer in the exercise of his official duties.”

So, Mr Speaker, my argument is that to the extent that the Constitution itself provides rights for this, and we have it as an additional remedy, we should have it in the law. Let us go to the rights under Chapter 5.

Mr Speaker, the rights under Chapter 5 includes protection of the right to life, personal liberty, respect for human dignity, protection from slavery, *et cetera*, and the Constitution provides in all of these, particularly 12, and I read;

“The fundamental human rights and freedoms enshrined in this Chapter shall be respected and upheld by the Executive, Legislature and Judiciary and all other organs of government and its agencies and, where applicable to them, by all natural and legal persons in Ghana, and shall be enforceable by the courts as provided for in this Constitution”.

This means, Mr Speaker, that when a person feels aggrieved, he can resort to a

court action straight away. At the same time, Article 218 provides another avenue where a person will decide to lodge a complaint in situations where he also feels that his rights are being abused. All I am saying in my amendment is that we are adding this. I am just trying to lift the provisions in 218 for same to be available to an officer who may be aggrieved.

I am not saying that because we have those elaborate provisions that allow for grievances to be lodged and all, we should just limit ourselves. Mr Speaker, we cannot. Let us open it up.

**Mr First Deputy Speaker:** Yes, the problem that I have is that, for instance, if the omission or acts of the Commission or the intelligence agencies resulted in negligence, would they go before the Commission of Human Rights and Administrative Justice?

**Osahen Afenyo-Markin:** Mr Speaker, if you pick it that way, then you may be creating some problem. The language is “may”, so the aggrieved person will now have to, in consultation with his lawyer, look at the nature of the complaint and which platform he or she would want to exercise.

That is why I am saying, in addition to— Mr Speaker, when your interrogation becomes like the Bench and the Bar, if I am not properly prepared, I am caught off guard. It has been long since I went to the Supreme Court.

**Mr First Deputy Speaker:** No. I just want us to get it.

**Osahen Afenyo-Markin:** Very well, Mr Speaker.

5:06 p.m.

**Mr First Deputy Speaker:** What this Bill is seeking to do is to provide some domestic remedies, if exhausted, then the way is open for you.

And I believe there are remedies under the law establishing the Commission on Human Rights and Administrative Justice (CHRAJ), which is available for everybody. But for the purpose of this law, it says that if you have a complaint in clause 21, first let the complaint go to the Security Coordinator. If the Security Coordinator has not been able to handle it or you are dissatisfied with the way it was handled, apply to the Chief Justice, and the Chief Justice will constitute a Committee to deal with the matter. When you are dissatisfied with the work of the Committee, then the world is open for you to take advantage and then seek remedy where it is appropriate. So, if you add this, then it means that you are adding a remedy under the CHRAJ law as part of the domestic remedies under this law. That is where I am having a difficulty.

**Osahen Afenyo-Markin:** I noticed that my Friend, Mr John Darko was trying to catch your eye. I would want to yield to him to make his input and then I can come back.

**Mr First Deputy Speaker:** Very well.

**Mr John Darko:** Thank you very much, Leader and Mr Speaker.

Mr Speaker, what the Minority Leader is trying to do is to ensure that the security personnel or anybody who is aggrieved by the operators of this act can choose which of the remedies available to apply to.

Mr Speaker, if, for instance, a security person feels aggrieved by this act, in most cases, they may not want to go to their own institution, the remedy you are suggesting. Some of them would rather want to go straight to CHRAJ because there is a fear that when a person goes straight to the officers, the seniors, they might not even get the justice that they deserve. So, what this amendment seeks to do is to give this person the opportunity to now decide that they would go to CHRAJ rather than come to their superiors, who may victimise them just by complaining, or who might not give them the justice they deserve. So, if we look at the rendition, I think that it is important. It says that “this person may, in addition to the remedy under the law...” so the remedy still exists, but may choose to go to CHRAJ. Clearly, Article 218 gives us the issues that can be brought before CHRAJ. And obviously, that would mean that this person feels that his or her human rights are being violated, and the person would rather go to CHRAJ rather than lodge a complaint which may not yield anything.

**Mr First Deputy Speaker:** Yes, normally, what happens is that we have domestic remedies and general remedies. The issue regarding CHRAJ is

a general remedy available to everybody. Now, the essence of domestic remedy is that a person can go to CHRAJ, and may be told that this is an issue that they can resolve internally based on the domestic remedy. So, they should be given the opportunity to do the remedy before—

The fact that they have these domestic remedies does not mean that they are prevented from going to CHRAJ. That is why, if we look at this, the law did not talk about a person assessing their relief in court. A person has unfettered access to the court and to CHRAJ, but this is just providing some domestic remedies. So, if we adopt this rendition, then we must also bring the issue relating to court; that a person must also go to court if they feel like it. But those are places open for a person to seek their relief. It is like what happened in the case of *GPRTU v. Danful*, if my memory serves me right. Where they came to court to say that they had a domestic remedy that A, B, C, D must happen, and had not exhausted the domestic remedy, yet they had come to court. The court said it would not dismiss the action, but will have the action stayed. So, they should go and exhaust the domestic remedy, and if they are not satisfied, then they can come back. In the same way, they can go before CHRAJ, that a person is here to seek a remedy before them as an adjudicating body. But our law says that, first, let the coordinator be aware of your complaint. He may address it, but if he is not able to address it, the Chief Justice will constitute a committee to deal with the issue, and if the person is dissatisfied, then the way is open for them.

But my challenge is making the remedy before CHRAJ as part of the domestic remedies that should be available.

**Mr Boamah-Nyarko:** Mr Speaker, I think we understand your position, and clearly so, the 1992 Constitution makes that provision, and this Bill also provides for a remedy, which includes reporting to the Security Coordinator. But the express provision in the Bill, as it is being proposed, is important because of the nature of the institution that we are dealing with. So, if we create that express provision, then the person will not be stopped, as you are indicating, whether it had gone to court prematurely, then the court would ask them to go and exhaust the internal processes. But once this express provision is made, the complainant has an option to go through either reporting directly to the Security Coordinator or they go to CHRAJ.

Mr Speaker, there are good reasons why in setting up some of these legislations, we should protect the interests of those individuals, particularly using the CHRAJ medium. Because Mr Speaker, you know that when we go under CHRAJ, there is a lot of protection and security for them in terms of the complaint, rather than exhausting it internally. Internally, there may be a lot of challenges. Initially, we were talking about defeating the process as has been listed there. But clearly, we can see that it is not going to defeat, but rather strengthen that position. So, I think we could look at it again.

**Mr First Deputy Speaker:** Well, I will put the Question, but my feeling is that if we give this option as being

proposed by the Minority Leader, it would therefore mean that without the security coordinator being aware of the issue, and without receiving a complaint, failing to work on it or working on it, and then a person is dissatisfied, anybody who has a complaint may go straight to CHRAJ. That is what it will mean.

So, that is the reason the person being in charge should know what is happening in his outfit. Then progress can be made.

**Mr Bede Anwataazumo Ziedeng:** Thank you very much, Mr Speaker. The thinking of the Committee and all the people who were involved in this business is not to open up the security and intelligence agencies widely. There is a way that we ought to control it and we should not be giving too many options. That is one of the options that they are proposing.

The point is that ultimately, whoever is aggrieved is still entitled after they have become dissatisfied with the outcome of the process. They are still entitled and nobody can stop them. But as you put it, the provisions of CHRAJ applies to every other person.

5:16 p.m.

This is specific to this particular Legislation. This is specific to the intelligence agencies and we do not want to open it up unnecessarily. It is possible that if we give that option, like he quite indicated, the first option for the person to exercise is to write to the Commission on Human Rights and Administrative Justice, instead of exhausting what we have. We do not want to have that. So, we reject that particular proposal. Thank you, Mr Speaker.

**Dr Agyeman-Rawlings:** Mr Speaker, in clause 42, which makes reference to the Regulations, what the Committee did, because of the issue of perhaps staff being victimised and not having a grievance procedure, was to actually insert a clause into 42. As we progress, we will find that. That particular clause there was grievance mechanisms. So, we are making provision for that within the system to actually take care of staff or employees who have these. Currently it is not explicitly stated and that is one of the things that we are inserting into Regulation.

I will just read out what it says. The regulations of the Security and Intelligence Agencies:

“(1) The Council may, by legislative instrument, within twelve months after the coming into force of this Act, make Regulations for the effective implementation of this Act.”

(2) Without limiting subsection (1), the Regulations may provide for

- (a) the scheme of service,
- (b) the conditions of service,
- (c) the retirement benefits,
- (c) reporting procedures,
- (d) matters on discipline, and
- (d) grievance mechanisms of the officers and employees of the security and intelligence agencies.”

**Osahen Afenyo-Markin:** Mr Speaker, let me thank the Chairperson for that explanation. So a subsidiary

enactment can only be made when the parent enactment has made provision for that. It is a parent enactment that paves the way or opens up the door for a subsidiary law.

My point is that if she says that there would be a subsequent Regulation to address this by providing for a grievance mechanism, I do not have a problem. However, I want the foundation to be laid. Mr Speaker, you know that in our courts, you can pursue an appeal and also pursue *certiorari* or *mandamus* under Article 133 as of right. So, you are invoking the court's supervisory jurisdiction, but there is no estoppel operating against you in law when you are pursuing an appeal.

You can have an appeal pending and at the same time go that route of invoking the court's supervisory mandates.

Mr Speaker, I do not think that we should preclude a person from pursuing a constitutional right under article 213 of the 1992 Constitution by a legislation. A person can pursue this right contemporaneously, in my view.

**Mr First Deputy Speaker:** Minority Leader, if you say the person is precluded, I have a problem.

**Osahen Afenyo-Markin:** Let me see if I can go along with you to solve this problem. Mr Speaker, can I, for instance, say that the grievance procedure provided for under the clause in reference does not estop an aggrieved person from pursuing his or her right under Article 218 of the 1992 Constitution? Would that make it simpler?

**Mr First Deputy Speaker:** Yes, it does not in the sense that —

**Osahen Afenyo-Markin:** Mr Speaker, please bear with me. I am saying that I would want to abandon this whole elaborate amendment and simply propose that amendment. Would that solve the problem? Alright, Mr Speaker, then I would want to go that route. Mr Speaker, do not let us belabour the point. I am ready to go that route because I have listened to you, so that we go with that route.

**Mr First Deputy Speaker:** When the Constitution provides a remedy, Parliament has no power to make a law to prevent anybody from enjoying that remedy. So, you cannot make a law to proscribe at somebody from seeking relief before the Commission of Human Rights and Administrative Justice or prevent the person from going to court. But what this law is seeking to do is that whatever happens, I am the Coordinator. Complain to me. I will be able to handle the matter at that level. But when I do not handle it to your satisfaction, the other remedies are available to you. Yes?

**Osahen Afenyo-Markin:** Mr Speaker, that is why you will live very long. Mr Speaker, since the drafts person is here, I believe she has listened to all the arguments regarding the new additional clause. So she should just draft the additional clause to state that—  
[Interruption] Then let us take a vote on my thing.

Mr Speaker, Hon Bede Ziedeng cannot also say that you do not want to open the place at the security services up.

**Mr First Deputy Speaker:** Hon Members, this is how I want us to resolve the problem.

**Osahen Afenyo-Markin:** He cannot say that he does not want to open it up. No, they suffer a lot so he should not go there.

**Mr First Deputy Speaker:** Hon Bede Ziedeng, I will direct the drafts person to look at the rendition in clause 21 as it is and then determine whether it precludes any aggrieved person from accessing the court or the Commission on Human Rights and Administrative Justice. If so, then there should be express provision to say that they are not prevented from having access to CHRAJ and the court so that we can make progress.

So we take it that your proposed amendment—

**Osahen Afenyo-Markin:** Mr Speaker, that is, in that context, I am fine. I would not litigate it.

**Mr First Deputy Speaker:** Yes, so we take it that the proposed amendment is abandoned.

**Osahen Afenyo-Markin:** Mr Speaker, with this enrichment, it solves the same problem, so I would not pursue it.

*Question put and amendment agreed to.*

Clause 21, as amended, ordered to stand part of the Bill.

## Clause 22 — Complaint tribunal

**Dr Agyeman-Rawlings:** Mr Speaker, I beg to move, subclause (2), paragraph (a), *delete* and *insert* the following:

“(a) a Justice of the High Court, a retired Justice of the High Court or a lawyer with considerable knowledge in the area or subject matter of the complaint and the operations of security and intelligence agencies in general, as chairperson; and”.

*Question put and amendment agreed to.*

5:26 p.m.

Clause 22, as amended, ordered to stand part of the Bill.

## Clause 23 — Examination of Complaints

**Mr First Deputy Speaker:** Chairperson of the Committee?

**Dr Agyeman-Rawlings:** The Committee has no amendments.

**Mr First Deputy Speaker:** Mr Jerry Ahmed Shaib, this is your proposed amendment. The Minority Leader said you will move it.

**Mr Jerry Ahmed Shaib:** Mr Speaker that is correct. I beg to move amendment proposed – Subclause (2), paragraph (c), *delete* and *insert* the following:

“(c) the tribunal determines, that hearing the complaint in full would pose

a real and demonstrable risk to national security, in which case the tribunal shall consider alternative protective procedures.”

**Mr First Deputy Speaker:** Chairperson what do you say to this proposed amendment?

**Dr Agyeman-Rawlings:** We are not opposed to this amendment.

**Mr First Deputy Speaker:** It is for the consideration of the House. *[Pause]*

Hon Jerry Ahmed the proposal is to *delete* clause 23 (2) (c) which says that:

“The tribunal shall not determine a complaint which

(c) the tribunal considers to be prejudicial to national security.”

Then we will replace it with

(c) the tribunal determines, that hearing the complaint in full would pose a real and demonstrable risk to national security, in which case the tribunal shall consider alternative protective procedures.”

So, the tribunal will have to hear the matter in parts.

**Mr Shaib:** Mr Speaker, I am not clear on what you mean by the tribunal will have to hear the matter in part.

**Mr First Deputy Speaker:** The current rendition in clause 23 (2) (c) says that:

“The tribunal shall not determine a complaint which

- (c) the tribunal considers to be prejudicial to national security.”

And you are asking that this will be *deleted* and then we *insert* then the following:

“The tribunal shall not determine a complaint which

- (c) the tribunal determines, that hearing the complaint in full would pose a real and demonstrable risk to national security, in which case the tribunal shall consider alternative protective procedures.”

**Mr Shaib:** Mr Speaker, it said “the tribunal determines”. But you said “shall not”.

**Mr First Deputy Speaker:** That is what I am asking whether by this the tribunal can hear the matter in parts.

**Mr Shaib:** That is so.

**Mr First Deputy Speaker:** That is the problem that I have. Because if the matter poses danger to national security why would the tribunal even hear the matter in part.

**Mr Shaib:** Hearing in parts is how one would understand that it poses a threat to national security. But if they do not start, how would they even come to a certain realisation?

**Mr Dafeamekpor:** The “determines” that is employed here is not about hearing. It is about a sort of *prima facie* determination or assessment. They review the complaint. He is employing “determines” here in the sense that there will be a part hearing of the matter. So, then it is not conveying the intendment. That is the position of Mr Speaker.

**Mr First Deputy Speaker:** Mr Shaib, the determination may not entail evidence being taken. They will do the determination on the face of the record before them. But if you say to determine after hearing in part, it is that some evidence must be taken before you can do that determination; that is hearing.

**Mr Shaib:** I agree with my Colleague, Hon Rockson, that we need to have a *prima facie* case established. By doing that, it is a way to say that we have come to this realisation and now we want to fully go into the matter.

**Mr First Deputy Speaker:** Well, let us look at it this way. For example, when the Chief Justice receives a petition about persons contained in Article 146 of the 1992 Constitution, the Chief Justice will make a determination of a *prima facie* case. At that level, a hearing is not conducted whether in part or in full. That is the kind of determination being contemplated here.

**Mr Boamah-Nyarko:** Mr Speaker, if we take clause 23 (1), it says “The tribunal shall examine and determine a complaint referred to the tribunal by the Chief Justice within thirty days after receipt of the complaint.”. So, it means

that the tribunal is to make a determination of the matter submitted within 30 days. When we come to the clause 23 (2), it is giving us grounds under which the tribunal shall not determine a complaint and it has (a), (b) and (c).

The lacuna here is that in clause 23 (1) the tribunal is to make a determination of the matter. Whilst in the clause 23 (2) the tribunal is establishing whether they even have to proceed to complete the investigation. So, there is a lacuna that we ought to fill. Else if we say that they have 30 days to make a determination of the referral by the Chief Justice, is it that the Chief Justice by then would have established a *prima facie* upon which the tribunal should make a determination? No. That is not the intent of this provision.

**Mr First Deputy Speaker:** You see if you look at clause 23 (1),

Let us look at it together. “The tribunal shall examine and determine a complaint referred to the tribunal by the Chief Justice within thirty days after receipt of the complaint.”. So here if you read from clause 22, the responsibility is not on the Chief Justice to determine a *prima facie* case.

So, when the Chief Justice receives the complaint, the Chief Justice will constitute the tribunal then “The tribunal shall examine and determine a complaint referred to the tribunal by the Chief Justice within thirty days after receipt of the complaint.”. Now clause 23 (2) seems to be a proviso. Notwithstanding clause 23 (1),

“The tribunal shall not determine a complaint which

- (a) the tribunal considers frivolous or vexatious or is not made in good faith;
- (b) is the subject matter of an action before a Court; or
- (c) the tribunal considers to be prejudicial to national security.

5:36 p.m.

- (c) the tribunal considers to be prejudicial to national security.”

So generally, clause 23 (1) sets the parameters based on which the tribunal is supposed to work. However, based on clause 23 (2), if these circumstances prevail, the tribunal will not do the determination of the matter.

**Mr Dafeamekpor:** Mr Speaker, the source of the mischief is the deployment of the word “determine” in the sentences. So, we must use another word to convey the intendment of the House. Mr Speaker, as you read in clause 23 (1), the tribunal has been given a time frame to hear complaints and bring a report, as we do for Committees. So, a referral is made, then the Speaker says we have two weeks within which to consider the referral and report to the House. That is the kind of language deployed here. But the word “determine” means a lot; it entails hearing, and it entails assessment. So, when we say that the tribunal shall examine and determine a complaint, in

other words, we are saying the tribunal shall examine and hear a complaint. So, the word should be “hear”.

Now, in clause 23 (2), we must move away from using the word “determine” to “hear”. “The tribunal shall not hear a complaint which the tribunal considers ...”. Mr Speaker, for the tribunal to come to that consideration, that the matter is frivolous, there is some form of assessment that is vexatious.

**Mr First Deputy Speaker:** In determining, we say the tribunal shall not hear.

**Mr Dafeamekpor:** Yes. Clause 23 (1) will read:

“The tribunal shall not examine and hear a complaint referred to the tribunal by the Chief Justice within thirty days after receipt of the complaint.”

Now, clause 23 (2) will read:

“The tribunal shall not hear a complaint which

- (a) the tribunal considers frivolous, vexatious, or is not made in good faith;
- (b) is the subject matter of an action before a Court; or...”

So, with the amendment that has been proposed for clause 23 (2) (c), it becomes easy.

**Mr First Deputy Speaker:** Hon Members, let me use my personal case that CHRAJ has ruled on recently. There were publications on social media that I have not filed my asset declaration. Then, one Asare proceeded to CHRAJ, stating that, based on evidence, I have not filed my assets declaration. Now, attached to the evidence was a search at the Audit Service, and the search revealed that I indeed filed a statutory declaration and the date on which I filed the statutory declaration was indicated. So CHRAJ in making the determination of the matter, determined so on the face of the record, and came to a conclusion that the action against me is frivolous and vexatious. Because you cannot bring an action based on evidence that the person did not file an assets declaration. Yet, the evidence shows that the person has filed assets declaration.

The next round is that I should have filed another one when I became the Board Chairperson of State Insurance Company (SIC). CHRAJ is of the view that the essence of filing asset declaration is for your assets to be determined at the point you are occupying the political position, and then at the point you are leaving, whether what you have been able to acquire for the period is commensurate with your earnings. So, it does not mean that for every public position that you are appointed, you should file an asset declaration. For instance, when you are a Member of Parliament, you have to file an asset declaration; when you become the First Deputy Speaker, you have to file an asset declaration; when they give you another political position, you have

to file an asset declaration. So, the conclusion was that the Audit Service would be inundated with asset declarations if that is what we have to go by. So, without taking evidence on the face of the record, they were able to determine that the action is frivolous and vexatious.

This is what we are contemplating here that they can make that particular determination without necessarily conducting a hearing. So, if you avoid the use of “determine”, then we will be causing more harm than good. That is why clause 23 (2) (b) says that, for instance, if you have received the complaint, and it turned out that the complaint is a subject matter pending before a court of competent jurisdiction, you would make that particular determination that the matter is before a court of competent jurisdiction. That is the end of it. The tribunal will not proceed with the matter. They will make that determination. If considering the issue before them, it is frivolous or vexatious or not made in good faith, they will make that determination, and that is the end of the matter.

So, it is serving as a condition based on which the tribunal will not proceed with the hearing of the matter, but will make the determination that the matter is frivolous, vexatious, pending before a court of competent jurisdiction, or that the matter will be prejudicial to national security. They will make that determination.

**Mr Shaib:** Mr Speaker, I think I totally agree with you. That is why this

rendition sits well with all the explanations you have given. With this, the moment there is a determination of a *prima facie* case, there will be a need to proceed to hear further. That is the understanding I get from this.

**Mr First Deputy Speaker:** So, we have to delete in full because the meaning that I can place in full is that it can be in part.

**Mr Shaib:** Mr Speaker, I agree.

**Mr First Deputy Speaker:** So, can you come out with a new rendition for the consideration of the House?

5:46 p.m.

**Mr Shaib:** Mr Speaker, the proposal is that:

“The tribunal determines, that hearing the complaint would pose a real and demonstrable risk to national security, in which case the tribunal shall consider alternative protective procedures”.

**Mr First Deputy Speaker:** Well, let us look at it this way.

“The tribunal shall not determine a complaint which the tribunal determines would pose a real or demonstrable risk to national security, in which case the tribunal shall consider alternative protective procedures”

Even bringing that is problematic, so we can end it at:

“The tribunal shall not determine a complaint which the tribunal determines would pose a real and demonstrable risk to national security”.

**Mr Shaib:** Mr Speaker, I think we should capture it as “a real and or”. Or, it cannot be conjunctive in that manner. Mr Speaker, you are the main draftsman.

**Mr First Deputy Speaker:** Yes, that is why I am comfortable with the old rendition, that, “The tribunal considers to be prejudicial to national security” so that we can avoid the use of “real” or “demonstrable”, because it must be prejudicial to national security. It is the same sense that we are trying to capture, but the way we are going about it is what is bringing the problem.

**Mr Shaib:** Mr Speaker, I would defer to you on this. But I think that the “real” and “demonstrable”, has an added advantage. The added advantage is that it goes beyond just prejudices, that it is demonstrable, rather than just thinking that it is a prejudice. Mr Speaker, that is the only departure from yours.

**Mr First Deputy Speaker:** So, it is the same tribunal that would determine the demonstrability or reality.

Yes, Hon Majority Chief Whip?

**Mr Dafeamekpor:** Mr Speaker, to establish “real or demonstrable”, you must lead evidence. So, you are taking us into another realm, but prejudicial is a term of art. It is pretty defined. Everybody knows what prejudicial

means. So, I believe that the use of prejudicial conveys the intendment of the House in a better way, in terms of the amendment that you are proposing, than to say that it is demonstrable. Demonstrable means what are the levels. Some evidence must be led, and once you are leading evidence, it must be recanted. It convolutes the process. But once it is prejudicial, it is pretty straightforward. That determination is easy to be made.

**Mr First Deputy Speaker:** So, I would advise that we go by the current rendition.

**Mr Shaib:** Mr Speaker, we would abandon the amendment.

**Mr First Deputy Speaker:** In the circumstances, I put the question to the entire Clause 23.

Clause 23 ordered to stand part of the Bill.

Clause 24 — Proceedings at Investigation

**Mr First Deputy Speaker:** Yes, Chairperson of the Committee?

**Dr Agyeman-Rawlings:** Mr Speaker, we have no advertised amendment.

**Mr First Deputy Speaker:** It is for the consideration of the House. Yes, Prof Kingsley Nyarko?

**Prof Kingsley Nyarko:** Mr Speaker, I would like to propose that Clause 24,

paragraph (1), line 3, the last word, “defence”, be *deleted* and in its place insert “national security” so that it becomes:

“The tribunal may exclude from the proceedings of the tribunal, persons other than parties to the proceedings and the lawyers of those persons where the tribunal considers it necessary in the interest of national security, public safety, public order, public morality or the protection of the private lives of persons concerned in the proceedings”.

My position is that if you use “national security” that talks about the strategies, the methods that are used by a nation to defend itself and that is broader as compared to the use of defence that is to protect somebody or something from being attacked. So that is my humble suggestion.

Thank you.

**Mr First Deputy Speaker:** It is for the consideration of the House. He is worried about the use of the word “defence” and that we should substitute “defence” with “national security” so that it will be “in the interest of national security” rather than “in the interest of defence”.

Yes, Hon Majority Chief Whip?

**Mr Dafeamekpor:** Mr Speaker, the entire legislation is about national security so I believe that we should rather

delete that phrase, “Consider it necessary in the interest of defence” so it should be:

“Where the tribunal consider it necessary in the interest of public safety, public order, public morality...”

Because all the different categories put together constitute national security.

**Prof K. Nyarko:** Mr Speaker, as much as I appreciate his position, the title of the Bill is Security and Intelligence Agencies Bill. If you look at the definition of national security, it refers to the measures, strategies and capabilities a nation employs to ensure its survival, sovereignty and stability against internal and external threats. The defence that was used in comparison with national security is a bit less appropriate so to broaden it, if we go with national security, then it is about protection of the sovereignty of the State because we do not want our opponents to know our strategies.

Mr Speaker I will respectfully disagree with him; let us stick to “national security” that will make it a bit more forward looking than deleting “the defence”. Thank you.

**Mr Dafeamekpor:** Mr Speaker, if we have to maintain his proposal, then “public safety, public order, public morality or the protection of private lives” must all go because all of them are no longer necessary as different categories of safety nets. The point I am making is that “in the interest of public safety”, that is, a matter of national

security; “in the interest of public order” that is a matter of national security; “in the interest of public morality”, that is a matter of national security; and “for the protection of the private lives of persons” is also a matter of national security. It is tautologous to introduce that category of safety nets with national security. That is my point. So, once we introduce national security, in my view, all the others are needless.

**Mr First Deputy Speaker:** Yes, let me hear from the Chairperson of the Committee.

**Dr Agyeman-Rawlings:** Thank you, Mr Speaker.

I believe that the context we are speaking to is with respect to the lawyers’ “defence” as opposed to the “defence of the country” so this is in terms of the legal defence. That is why you have all those other phrases, “public safety, public order”, used here. So, it is in interest of defence because it says:

5:56 p.m.

“The tribunal may exclude from the proceedings of the tribunal, persons other than parties to the proceedings and the lawyers of those persons, where the tribunal considers it necessary in the interest of defence...”

As in the defence of the individual so it is not about national security, it is about the defence of the individual.

**Mr First Deputy Speaker:** Hon Members, let us get it this way. Let us look at the last line. The last line is talking about persons concerned. So, it reads:

“The Tribunal may exclude from the proceedings of the tribunal, persons other than parties to the proceedings and the lawyers of those persons, where the tribunal considers it necessary in the interest of defence...”

Defence of what? Public safety, public order, public morality, or the protection of the private lives of persons concerned in the proceedings?

Yes?

**Mr Boamah-Nyarko:** Mr Speaker, from the context of the Chairperson to the Committee, yes, the intention now is clear, that it is referring to the persons concerned. But if we say defence, in the interest of defence, it is very difficult to appreciate. Why are we not using safety? Because if I understand the context of the “defence” here, we are thinking about the personal safety of the—I think we have to replace the “defence” with “safety”.

**Mr First Deputy Speaker:** Very well. Hon Members, can we consider deleting “defence” in its entirety so that it will be in the interest of public safety, public order, public morality, or the protection of the life of persons concerned in the proceedings? Because public safety, public order, public morality are all matters of national interest.

**Prof K. Nyarko:** Mr Speaker, I do not grammatically oppose you on that score, but I am sure that the “defence” was put there intentionally. So why do you exclude such persons? Probably you do not want them to know the security architecture of the country, if that is what is being considered. That is the essence. However, if we look at the definition of “defence”, it is the act of protecting someone or something against attack, danger, or injury. My bone of contention is that it is fine if we delete the choice of “defence”. However, national security, public safety and public order are not the same, though there could be national security issues, so I still maintain that national security in this context—

**Mr First Deputy Speaker:** But your initial proposal is to delete “defence” and replace it with “in the interest of national security”. Is that not what you are proposing? So, do you still stand by that proposal?

**Prof K. Nyarko:** I think I am convinced about that position.

**Mr First Deputy Speaker:** So, you are first proposing that “defence” should be deleted, and now they agree with you that the “defence” should be deleted. But if you are going to say, in the interest of national security, then we should do away with public safety, public order, public morality, or the protection of the private life of persons concerned in the proceedings. And then we end it with the interest of national security, because national security will embody all this. In other words, to leave all these words,

then we have to do away with “in the interest of defence” and then we make it in the interest of public safety, public order, and then all those ways will again come.

**Prof K. Nyarko:** Mr Speaker, you know that when it comes to matters of legislation, I will always yield to you, so in a superior judgement and as the Majority Chief Whip earlier suggested, then “defence” must go, so that we have our peace. Is that not it? Thank you, Mr Speaker.

**Mr First Deputy Speaker:** So, the new rendition will be:

“The tribunal may exclude from the proceedings of the tribunal, persons other than parties to the proceedings and the lawyers of those persons, where the tribunal considered it necessary in the interest of public safety, public order, public morality or the protection of the private lives of persons concerned in the proceedings.”

*Question put and amendment agreed to.*

Clause 24 as amended ordered to stand part of the Bill.

Clause 25 — Notification to the National Security Co-ordinator or Director-General.

**Mr First Deputy Speaker:** Chairperson of the Committee?

**Dr Agyeman-Rawlings:** There are no proposed amendments.

**Mr First Deputy Speaker:** It is for the consideration of the House. Hon Members, any proposed amendments?

**Mr Boamah-Nyarko:** Mr Speaker, I have difficulty with this particular provision to the extent that already we have a procedure of complaint, and that complaint first goes to the National Security before referral is made to the Chief Justice and then the processes continue. So, I do not know if the Chairperson can explain to us why the Committee should necessarily write again to the National Security Co-ordinator or the Director-General before commencement of hearing. I just want some clarity.

**Mr First Deputy Speaker:** Well, the reason is just very simple. In that case, the complaint will be against the decision of the co-ordinator. You are aggrieved by the decision of the co-ordinator, or the co-ordinator is not acting. These are the two bases for which you can write a petition to the Chief Justice. So, by necessity, the co-ordinator or the office of the co-ordinator will become a party to the suit. Therefore, if you send a complaint without ensuring that that particular complaint is served on the other party, you may be breaching the natural justice principle.

**Mr Boamah-Nyarko:** Mr Speaker, rightly so, and we know in law that once there is a complaint against someone and hearing is supposed to be determined, they will make sure that all parties involved or interested parties would be reached out to. So, my worry from this rendition is the provision that the tribunal

shall not commence the examination of the complaint referred by the Chief Justice, unless the tribunal has submitted a written notice of the complaint again with all the documentation relating to the complaint to (a) and (b).

6:06 p.m.

But in terms of ensuring that the National Security Co-ordinator or the Director-General is in the know of the investigation is a matter of course that the tribunal would reach out to them for them to also open their defence or bring their documentation for them to make that determination.

**Mr First Deputy Speaker:** You see, part of the reason for which there can be a complaint is that if they did not act.

Yes, let me hear you.

**Mr Dafeamekpor:** Mr Speaker, I think my Brother, Hon Boamah-Nyarko, should pay attention to the reasons given. Clause 25 (a) says that where the complaint is against the Office of the National Security Coordinator. So it is not a general proviso. I am reading from the law. All right, so 25 says,

“The tribunal shall not commence the examination of a complaint referred to the tribunal by the Chief Justice, unless the tribunal has submitted a written notice of the complaint together with all due documentation relating to the complaint to...”

That is his worry. So the grounds upon which this provision is being crafted are thus, where the complaint is specifically

against the Office of the National Security Co-ordinator. It is here. No. What document does he have? In 25, there is an (a), so it is not a hanging provision. So it says that where the complaint is specifically against the Office of the National Security Coordinator, one must notify them before they commence.

So, 25 says,

“(a) The National Security Co-ordinator, where the complaint is against the Office of the National Security Co-ordinator; or

(b) The Director General, where the complaint is against an internal or external intelligence agency”.

Do you understand?

**Mr First Deputy Speaker:** Hon Members, there is no advertised amendment, and there is also no amendment to clause 25. If there is an amendment, we will take the proposed amendment. But in the absence of any proposed amendment, we will put the question.

Clause 25 to 30 ordered to stand part of the Bill.

Clause 31—Effect of Warrant

**Dr Agyeman-Rawlings:** Mr Speaker, I beg to move, amendment proposed—*delete* and *insert* the following:

“Effect of a warrant 31.

A warrant issued under this Act shall authorise

(a) a person in a class of persons specified in the warrant to exercise the powers specified in the warrant for the purpose of intercepting communication, obtaining information, a record, a document or a thing of the type specified in the warrant; and

(b) any other person to provide assistance to the person exercising the powers specified in the warrant if the person required to provide assistance believes, on reasonable grounds, that the person exercising the powers specified in the warrant is doing so in accordance with a warrant.”

I so move.

*Question put and amendment agreed to.*

**Mr Shaib:** Mr Speaker, I beg to move, amendment proposed – *Add* the following new subclause:

“A warrant authorising interception shall be subject to review by the issuing judge every thirty days and shall lapse unless renewed upon demonstration of continuing necessity.”

**Mr Dafeamekpor:** Mr Speaker, instead of 30 days, I believe that we should do 45 days. Because it takes a lot of logistical support to effect such warrants. So the frequency should be sparing.

**Mr First Deputy Speaker:** Well, Hon Members, what is the necessity of having the warrant reviewed? What is a warrant in the first place?

**Mr Shaib:** Mr Speaker, the warrant gives permission to—this is the warrant for interception, so it is a specific warrant. If care is not taken, it will be unduly reutilised. So we are keeping or using it for a certain purpose within a certain period. It could also be defective or could also be used for other purposes if it is kept indefinitely. So there is a need for us to review the same over a period so that we come to a certain realisation on whether or not it is still needed, or even if it has to be extended. That is the essence.

**Dr Agyeman-Rawlings:** Mr Speaker, in other jurisdictions, it is usually a 90-day period of renewal. So, I do not think we are against this particular clause except to increase it to 90 days.

6:16 p.m.

**Mr First Deputy Speaker:** Yes, there is a counter-proposal that instead of 45 days, it should be a 90-day warrant.

**Mr Dafeamekpor:** Mr Speaker, I guess that is the sense of the House.

**Mr Shaib:** Mr Speaker, so the sense of the House, as I get from the Majority Chief Whip, would be 60 days?

**Mr Boamah-Nyarko:** Even the Chairperson agrees.

**Mr Shaib:** Madam Chairperson agrees, and I have taken judicial notice that the Minister also agrees.

**Mr First Deputy Speaker:** Yes, what is the sense of the House?

**Mr Dafeamekpor:** Mr Speaker, that we *delete* 30 days and *insert* 60 days.

**Mr First Deputy Speaker:** Then I will put the Question—*[Pause]*

Hon Ahmed Shaib, you moved the amendment on behalf of Osahen, but why are we saying “the issuing judge”? Because, for instance, if a judge has granted warrants, and within the 60 days or the 90 days, the judge is gone on course, or the issuing judge is not available. Does it mean a judge of coordinate jurisdiction cannot review it?

**Mr Shaib:** Mr Speaker, that is why the law is still in your bosom. I agree that Mr Speaker is very well-versed. I agree that there could be complications when we are only dealing with the issuing judge because the example you gave is accurate. It makes a lot of sense.

So, Mr Speaker, we can depart from the word “issuing judge” and make it open, and I seek your guidance on that one.

**Mr First Deputy Speaker:** So, we can just simply say that “a warrant authorising interception shall be subject to a review every 60 days”. Now, another thing that we should look at is that if we look at clause 31, it is not only talking about interception. So, by the proposed

rendition, it is only a warrant in respect of interception that will be renewed, but others will not be renewed. If that is the sense of the House, then we have to say: “A warrant authorising interception shall lapse after 60 days unless renewed upon demonstration of continuing necessity”

**Mr Shaib:** Mr Speaker, it means that we are taking the issue of review out, which I also think is critical. Yes, because;

“a warrant authorising interception shall be subject to review by the issuing court 60 days and shall lapse unless renewed upon demonstration of necessity.”

**Mr First Deputy Speaker:** No, let us give the time period within which the warrant will be valid. Then you can subject it to “...unless reviewed....”

**Mr Shaib:** Very well.

**Mr Dafeamekpor:** So, Mr Speaker, your rendition is good, but we need to indicate the authority to do the renewal. So, it should be “...upon an application...”

So, we take away “...upon demonstration of continuing necessity”. All those are convoluted “...upon application...”

**Mr Shaib:** That I agree with my Colleague. It does not make it tautologous; it is straight to the point.

**Mr First Deputy Speaker:** So, the new rendition, “a warrant authorising

interception, shall be valid for 60 days and renewable upon application.”

*Question put and amendment agreed to*

**Mr First Deputy Speaker:** I would order the proposed amendment to stand as part of the Bill and direct the draftsman to tidy it up for us.

Now, we move to amendment on item numbered 23(xi), also standing in the name of Osahen Alexander Kwamena Afenyo-Markin.

**Mr Shaib:** Mr Speaker, I still take this amendment proposal made by Osahen Alexander Kwamena Afenyo-Markin, and this is captured on page 22. It reads:

“amendment proposed — *Add* the following new clause after clause 31 to read,

- (1) Where a warrant expires and no prosecution is initiated within 12 months, the person whose communication was intercepted shall be notified unless a court orders otherwise on national security grounds.”

Mr Speaker, Clause 31 (2) also says that:

“Information obtained under a warrant which is not relevant to a national security threat shall be destroyed within a period prescribed by Regulations.”

Mr Speaker, these are the amendments proposed.

**Mr First Deputy Speaker:** Hon Member, the first question for you to answer is that we have a statute of limitations that deals with issues of this nature, and we normally say that a crime cannot be statute barred. So, why are you proposing the first rendition in the first place?

**Mr Shaib:** Mr Speaker, so what would be your instruction on this? Is that to say that we should abandon the first?

**Mr First Deputy Speaker:** Yes, because the statute of limitation would have taken care of the period within which we bring action against the person.

**Mr Shaib:** And crime is not statute barred?

**Mr First Deputy Speaker:** Crime cannot be statute barred.

6:26 p.m.

**Mr Shaib:** Mr Speaker, beyond that, will the (2) not hold?

**Mr First Deputy Speaker:** So, let us deal with (1), then we can come to (2). One after the other.

**Mr Shaib:** Very well. Mr Speaker, I think we should abandon the one.

**Mr First Deputy Speaker:** So, the (1) is abandoned. Now, let us come to (2).

“Information obtained under a warrant which is not relevant to a

national security threat shall be destroyed within a period prescribed by Regulation.”

Hon Minister, you are in. What do you say about this rendition?

**Alhaji Mohammed-Mubarak Muntaka:** I do not see what this is going to cure, because all I would then do is to say this thing is a national security threat and continue to keep it. So, I label it so. But, Mr Speaker, as my Colleagues may know, you may pick information today that may not be complete. For it not being complete today looks like it is not a relevant information. Tomorrow, you pick another piece, then all of a sudden, this one now becomes a very useful and important information. If you destroy it, then you would have denied yourself.

Let me give a typical example. Every gun that fires a bullet, is uniquely identified. So, you go to a crime scene and you pick bullets. But currently in your database, it does not match any sidearm or any ammunition or any arm. Thirty days after, six months later or one year later, you accost a criminal and there is a gun on him. You go and run that gun on your data system and it begins to link the bullets that you picked about six months or a year ago which you could not link to any gun at the time to this very gun that is now found on that person. I will give another typical example. About three or six months ago, a Kusasi chief was killed in Asawase. Interestingly, an operation happened just last week in another part of Kumasi, Bekwai, only to realise that they are now being linked. So, if you say we should

destroy it because today it does not look relevant, it may be relevant tomorrow. That is why that information is usually not destroyed unless when it becomes very necessary.

So, I would want to plead with the proposed amendment that, in the best national interest, we do not even need to put this because what I would simply do as the Minister responsible is to tell you that, this is a national security threat and therefore I would want to keep it. Then it becomes something that people may then say that you are abusing. One may say how is this paper a national security threat? But I am looking at the fingerprints that are on it and all that. But for you, it is simply a paper. But for me, it is about the fingerprint. So, I would want to plead with the one proposing this amendment that this may not be useful.

**Mr First Deputy Speaker:** Thank you, Hon Minister. Another thing that we should look at is we are asking that it be destroyed. Now, this information is being intercepted based on the court order. Nobody is aware apart from the security intelligence. How is it going to be destroyed in a similar way? Are you to ensure that it is destroyed in a similar clandestine manner that nobody will again be aware of? They got the information and they claim that the information is no longer of use for them. Then the law is saying that destroy it. So how are we going to ensure that really the law that we are enacting that information be destroyed is really destroyed? When it is destroyed, as the Minister said, and then after six months, there is a need to use that particular

information. You have already destroyed it, so it is no longer available for you to use. So, in the circumstances, whether it is destroyed or not destroyed, what purpose does it serve?

Once the information is no longer relevant, nobody will be arrested based on that information, and it will not even be disclosed to the general public that this is the information that we have. So why are we interested in the information being destroyed?

**Mr Shaib:** Mr Speaker, I think that the Minister's explanation is largely reasonable against the background that he is giving as a practical example. But in cases that some of these pieces of evidence or things we chance upon, some of them, we also are careful that they are not used for other purposes. There have also been instances that you can also even pick a gun during a crime scene and then the next moment you would notice that that is even connected to somebody who was actually not a part of the process. But I will yield to the Minister's explanation because I think that is more practical.

**Mr Dafeamekpor:** Mr Speaker, within the terms of section 51 of the Evidence Act, it is only relevant evidence that we take to court anyway. So, the proposal that information obtained that is not relevant should be destroyed is totally—because then it will not be—

**Mr First Deputy Speaker:** The Hon Member has abandoned the amendment.

**Mr Dafeamekpor:** Mr Speaker, we do not put the question on clause 31.

**Mr First Deputy Speaker:** Did I not put a question on clause 31?

**Mr Dafeamekpor:** No, you did not. Because we are looking at the amendments.

*Question put and amendment agreed to.*

Clause 31 ordered to stand part of the Bill.

**Mr First Deputy Speaker:** This actual proposed amendment is after Clause 31. That is why I felt I have already put a Question already on 31. But nevertheless,

Clause 32— Expenses of Council and security and intelligence agencies

**Dr Agyeman-Rawlins:** Mr Speaker, I beg to *move: delete and insert* the following:

“Expenses

32. Parliament shall approve moneys required for the expenses of the Council, Office of the National Security Coordinator and intelligence agencies.”

**Mr First Deputy Speaker:** Hon Member, the insertion here is the Office of the National Security Coordinator.

*Question put and amendment agreed to.*

Clauses 32 and 33 ordered to stand part of the Bill.

Clause 34 — Annual reports and other reports

**Mr Isaac Boamah-Nyarko on behalf of Osahen Alexander Kwamena Afenyo-Markin:** Mr Speaker, I beg to *move: insert* the following new subclause:

“(#) The Minister shall provide a detailed classified briefing on the budget and expenditure of the security and intelligence agencies to the Parliamentary Committee responsible for Defence and Interior.”

Mr Speaker, this is in tandem with international best practice. If you go to any jurisdiction where we take national—If you go to other jurisdictions where we take these issues very seriously.

6:36 p.m.

If we go to any jurisdiction where they take these issues very seriously, it is important that at least the Parliamentary Committee on Defence and Interior is seized with a detailed expenditure of budgets approved, and for that reason, I move this amendment.

**Dr Agyeman-Rawlins:** The Committee is not the Committee on Defence and Interior, if that is what he is proposing. It is the Committee on Security and Intelligence.

**Mr Boamah-Nyarko:** Very well. I do not think it harms much to replace Defence and Interior with Security and Intelligence, so it still stands in terms of the proposal I am making.

**Mr First Deputy Speaker:** Hon Boamah-Nyarko, you have been in this House when Budgets were approved. Is that not so?

**Mr Boamah-Nyarko:** That is so, Mr Speaker.

**Mr First Deputy Speaker:** Moneys have been approved by Parliament. So, is there any law such as this to say that Parliament shall approve money required for expenses of the Council or expenses of any institution?

**Mr Boamah-Nyarko:** Mr Speaker, I believe that when it comes to—

**Mr First Deputy Speaker:** It says “the Minister shall provide a detailed classified briefing on the budget and expenditure of the security and intelligence agencies to the Parliamentary Committee responsible for Defence and Interior”.

Have you met any law of that nature before you exercised your oversight?

**Mr Boamah-Nyarko:** Not necessarily, but because when it comes to expenditure of National Security, there are always instances where in briefing Parliamentary Committees—and I stand to be corrected in this matter—there are many budgetary

expenditures which are kept without detailed provision under the auspices that this is national security.

**Mr First Deputy Speaker:** Another question that you have to answer is that who determines whether the briefing is in detail or not? And if it is not in detail, what happens?

**Mr Boamah-Nyarko:** So, Mr Speaker, I believe that when we talk about detailed expenditure, clearly it means that we have to explain deeper than ordinarily the heads that you would. It is very clear.

**Mr Dafeamekpor — rose —**

**Mr Boamah-Nyarko:** The Leader should let me have my bite. If we go to any Committee meeting and then budgetary details are being provided, there are certain heads that if we make this provision, the Minister—and this is national security.

**Mr First Deputy Speaker:** Which Committees do you belong to? Just for the purposes of examples.

**Mr Boamah-Nyarko:** I am on the Finance Committee and the Committee on Environment, Science and Technology.

**Mr First Deputy Speaker:** If Ministry of Environment, Science, Technology and Innovations bring their budget, what do you do?

**Mr Boamah-Nyarko:** Mr Speaker, I do not think—

**Mr First Deputy Speaker:** And is there any law of this nature before you do what you are supposed to do?

**Mr Boamah-Nyarko:** No, Mr Speaker. But that is why I said this Bill that we are passing relates to—*[Interruption]*—Mr Speaker is engaging me, so let me have—you have not caught his eye. Mr Speaker has not found you.

**Mr Dafeamekpor:** Mr Speaker, I was trying to draw my Brother's attention to Order 258 of our Standing Orders which mandates the Committee on Security and Intelligence. Particularly if you read Order 258 (3), it says "The Committee shall examine the budget estimates of the National Security Ministry and agencies under the Ministry.". This is very specific. So, the guide we are providing for him is that it is not necessary for us to enact a law, because our Rules provide for the Committee to exercise that oversight.

The other matter the Speaker is bringing to Mr Boamah-Nyarko's attention is that he is introducing a subjective. He is saying that it should be detailed. He should not let us legislate that way. Let us allow the Committee. Once the Committee has the mandate, when the time comes, they will exercise that mandate and exercise the oversight. So, let us make progress.

**Mr Boamah-Nyarko:** Mr Speaker, I read carefully Order 258, and referencing what the Majority Chief Whip indicated. Yes, the Committee shall examine the budget estimates and

we know that budget estimates, of course, include what we intend to spend and what was spent. But the reason this proposal is being made, specifically in respect of national security, is the way and manner that details of the expenditure are not readily made. That is why I said I am taking this from briefings I have. I am not saying that is wholly true or false.

But from my briefing and my intelligence, it suggests that there are lots of expenditures that are not made readily available to the Committee in detail. So, when we make this provision in this Bill, then the Committee—Mr Speaker, this is a Committee of Parliament, your Committee in passing should be interested in knowing the exact detailed budget expenditure made. So, Mr Speaker, this is to protect us as a House; protect you and protect your Committee.

**Mr First Deputy Speaker:** So, the Office of the Special Prosecutor brings a budget and the Office of the National Security Coordinator also brings a budget. Now, in the Special Prosecutor's Act, this provision is not there. In the Office of the Special Prosecutor, this provision is there. Does it mean the Office of the Special Prosecutor's budget will not be treated by the Committee in the same way as that of the—you see, so certain amendments bring problems. Because if a judge is looking at the two laws, this one is saying that the expenses should be in detail, and it is silent on other one. If you are a judge, what interpretation will you put on it?

We do not need this particular legislation to be able to exercise our oversight. The exercise of our oversight is regulated by our own Standing Order. So how can we be inflicting this injury on ourselves?

**Mr Boamah-Nyarko:** I believe that these discussions are also on record. *Hansard* is capturing it. It is giving the intendment of us lawmakers.

**Mr First Deputy Speaker:** If you insist, I will put a Question on it.

**Mr Boamah-Nyarko:** No, before you put the Question, and I would be very happy if you put a Question, what I am saying is that with this engagement, it is clear, and *Hansard* is capturing it, so that tomorrow when your Committee is asking for details of expenditure, they will be guided accordingly.

**Mr First Deputy Speaker:** All the institutions that have been coming before the Finance Committee, most of them are governed by an Act of Parliament. Where have we seen this rendition in their respective laws? Yet you exercise the oversight.

**Mr Richard Acheampong:** Mr Speaker, Hon Boamah-Nyarko is a Member of my Committee.

**Mr Boamah-Nyarko:** It is the Speaker's Committee. It is not your Committee. You are Vice-Chairperson of the Finance Committee.

**Mr First Deputy Speaker:** Please, you have the floor.

**Mr Richard Acheampong:** Mr Speaker put me there to manage them at the Committee level. Mr Speaker, every year, or mid-year, the agencies or the Ministry will present their budget to the Committee. They give detailed expenditure and revenue narration to the Committee Members. We go further to request for additional information.

Just last three days, we met as a Committee and requested for additional information, and the same was provided to the Committee. So, I do not know why we want to drag this matter. All right; he wants *Hansard* to capture his proposed amendment which we are going to abandon. So, Mr Speaker, put the Question, and let us test it.

6:46 p.m.

**Mr Oscar Ofori Larbi:** Mr Speaker, this is a House of records. I heard my Colleague Hon Boamah-Nyarko saying he does not even know what he is saying, whether it is true or not, but he got a briefing. This Committee is on oath, so for Members to divulge information to you would be serious, so I do not want that to be captured in the *Hansard* because we are on oath. So, where did he get his briefing?

**Mr Boamah-Nyarko:** I never said that it is from the Members of the Committee and there are so many people who come to his Committee and the fact that he is on oath does not mean that I cannot get information from his Committee. So, please let us be guided.

*Question put and amendment negatived.*

Clauses 34 and 35 ordered to stand part of the Bill.

**Mr First Deputy Speaker:** Before Clause 36 —

**Mr Shaib:** Mr Speaker, respectfully, there has been an engagement with my Colleague, the Majority Chief Whip and we think that it is necessary we put the brakes on this Bill. Mr Speaker, the Majority Chief Whip is not taking care of my people; he is not engaging. Mr Speaker, I think he should engage you further. At this point, we should defer the discussion on the Bill.

**Mr Dafeamekpor:** Mr Speaker, I believe that you have done so much for today; Consideration of two major Bills. So, we want to draw the curtains on Clause 35 on this particular Bill. But, Mr Speaker, because we have had the Deputy Minister for Food and Agriculture being with us nearly the entire proceedings, we want to pray you to take Questions.

**Mr First Deputy Speaker:** This brings us to the end of the Consideration Stage of the Security and Intelligence Agencies Bill, 2025.

Hon Members, Question time. May I ask the Deputy Minister to take the designated seat, as I call on Hon Richmond Edem Kofi Kpotosu to ask the Question numbered 398.

Hon Member, you have the floor.

## ORAL ANSWERS TO QUESTIONS

### MINISTRY OF FOOD AND AGRICULTURE

#### Plans to Protect Food Buffers During Pandemics

**Mr Frank Afriyie** *on behalf of Mr Richmond Edem Kofi Kpotosu (NDC —Ho Central):* Mr Speaker, I beg to ask the Minister for Food and Agriculture the plans of the Ministry to protect food as a buffer to support Ghanaians in times of any pandemic that would prevent the importation of food items.

**Deputy Minister for Food and Agriculture (Mr John Setor Dumelo):** Mr Speaker, the National Food Buffer Stock Company (NAFCO), for the first time in our history as a country, has been resourced to procure food for emergency reserves. Mr Speaker, Procurement is currently underway. This is to provide food buffer for emergency purposes.

**Mr First Deputy Speaker:** Any supplementary questions?

**Mr Afriyie:** Mr Speaker, that will be all.

**Mr Boamah-Nyarko:** Mr Speaker, the Minister indicated in his Answer that for the first time in our history, the country has been resourced to procure food for emergency. I would like to find out from the Deputy Minister how much has been made available for this procurement of food items.

**Mr First Deputy Speaker:** You are talking in terms of money?

**Mr Boamah-Nyarko:** Yes, Mr Speaker.

**Mr First Deputy Speaker:** File a new Question.

Deputy Minister, resume your seat.

When you are asking about how much, if the Minister misquotes the figure, you will put him into trouble. So, if it is about a specific figure, ask a specific Question and he will bring an accurate answer. We will be the very people to say that the Minister has come to lie in Parliament. We do not expect that as Ministers, they keep everything in their mind, so if you are asking for a specific figure, ask so that they can bring the exact figure.

**Mr Shaib:** Mr Speaker, the Minister says that this procurement is currently underway. What does he mean by that?

**Mr Dumelo:** Mr Speaker, procurement is underway means that procurement from the farmers in terms of maize, rice *et cetera* is currently being procured from the farmers for storage.

**Mr Shaib:** Mr Speaker, how is this procurement undertaken?

**Mr Dumelo:** Mr Speaker, it is being undertaken by NAFCO through seven selected companies.

**Mr Shaib:** Mr Speaker, I was trying to find out the procurement process. Is it single sourcing or selected —

**Mr First Deputy Speaker:** Please file a new Question.

**Mr Shaib:** Mr Speaker, this is procurement. I am at a loss. This is not to challenge your authority, but he talked about procurement being underway and then he says that it is NAFCO. I am only asking for further details on whether it is single sourcing.

**Mr First Deputy Speaker:** Hon Members, I keep saying that Question time and supplementary questions should not be taken as a cross-examination. You are eliciting a fact from the Minister, and supplementary questions are designed that way so that they relate to the original Question in the sense that the Minister would not be taken by surprise. Nobody is a master of all knowledge that when you are sitting as a Minister, everything is within your head. So, when a specific Question is asked, then the Minister provides a specific answer. The question has nothing to do with methods of procurement, yet your supplementary question is on the method of procurement.

6:56 p.m.

Meanwhile, if a Question is asked the Minister the method of procurement in doing ABCD, he will refer to the record and bring you a factual Answer.

**Mr Shaib:** Mr Speaker, I know that you come in under Order 89 and you are right with this posture, but, Mr Speaker, that is also a problem. We may have to look at Order 89 again. Because, what it then means is that Ministers will just come and answer Questions, and you

cannot probe further. If you have to probe further, you are now going to reprogramme the Minister to come and answer a Question that—Mr Speaker, because when you are talking about procurement, which is generally the case, and you are saying that—He should know whether it is single sourcing or competitive tendering, or restricted. It should be basic.

**Mr First Deputy Speaker:** I indicated here that Members of Parliament are regulated as to which Question to ask and how they ask the Question. But unfortunately, the Ministers are not regulated as to how they answer the Question. So, I cannot apply the rules to the Answers of the Minister, but I can apply the rules to the supplementary question. If we feel as a House that we have a problem with that, then what we will have to do, first of all, is to cause our rules to be amended. Until then, we have to apply the rules as it is.

We move to the Question numbered 427 which stands in the name of Hon Kwame Dzudzorli Gakpey. Hon Member, you have the floor.

**Cost and Quantity of Fertiliser  
Purchased from 2017 to 2024 and  
Mode of Distribution**

**Mr Kwame Dzudzorli Gakpey (NDC — Keta):** Mr Speaker, I beg to ask the Minister for Food and Agriculture how many metric tonnes of fertiliser were purchased from 2017 – 2024, the total cost and how it was distributed.

**Mr Dumelo:** Thank you, Mr Speaker.

Mr Speaker, between 2017 and 2022, the Government implemented a flagship programme known as the Planting for Food and Jobs (PFJ) campaign. The primary objectives of the programme were to ensure national food security, create employment opportunities, provide raw materials for local industries, and increase agricultural exports.

The PFJ initiative was anchored on five key pillars of intervention, namely:

- i. Provision of improved seeds;
- ii. Provision of fertiliser;
- iii. Extension services delivery;
- iv. Marketing; and
- v. E-Agriculture.

The programme focused on promoting the cultivation of major staple food crops and vegetables widely grown across the country, including maize, rice, soybean, sorghum, groundnut, tomato, onion, and pepper. Under the initiative, interested farmers received support in the form of improved seeds of targeted crops, fertilisers, and extension services provided directly by the Ministry. The other pillars, particularly marketing and e-agriculture, were implemented in collaboration with private sector partners.

Mr Speaker, beneficiary farmers accessed fertilisers under the programme at subsidised rates ranging between 20 per cent and 50 per cent. The first phase of the programme was implemented over a six-year period, from 2017 to 2022.

The quantities of fertilisers distributed, and the corresponding amounts paid

under the programme, are presented in Table 1 below:

Table 1: Quantities of Fertilisers Distributed and Amounts Paid (2017–2022)

| <b>Year</b>  | <b>Quantities Distributed (MT)</b> | <b>Amount Paid (GHC)</b> |
|--------------|------------------------------------|--------------------------|
| 2017         | 121,000.01                         | 212,846,002.50           |
| 2018         | 247,039.33                         | 332,316,706.00           |
| 2019         | 286,355.00                         | 461,505,540.50           |
| 2020         | 422,258.00                         | 587,876,784.00           |
| 2021         | 239,096.10                         | 278,567,669.00           |
| 2022         | 71,962.70                          | 125,433,835.00           |
| <b>TOTAL</b> | <b>1,315,748.44</b>                | <b>1,998,546,537.00</b>  |

Mr Speaker, under the programme, private fertiliser companies were engaged through a competitive bidding process to supply fertilisers to farmers. These companies distributed the inputs to beneficiary farmers through their established networks of distributors and retailers across the country. Payments to participating fertiliser companies were made strictly based on the quantities of fertilisers actually supplied to farmers under the programme. Fertilisers imported by companies specifically for the PFJ but not distributed to farmers were not eligible for payment.

Mr Speaker, the fertiliser subsidy programme under the Planting for Food and Jobs initiative was reviewed after six years of implementation (PFJ phase 2.0). The review resulted in the introduction of the 'Input Credit Scheme'. Under the input credit scheme, farmers received farm inputs for production on credit through designated aggregators. The farmers were expected to repay the cost of the inputs in kind, with farm produce after harvest.

Mr Speaker, the quantities of fertilisers distributed under the Input Credit Scheme, together with the associated expenditure, are presented in Table 2 below.

Table 2: Quantities of Fertilisers Distributed and Amounts Paid (2023–2024)

| <b>Year</b>  | <b>Quantities Distributed (MT)</b> | <b>Amount Paid (GHC)</b> |
|--------------|------------------------------------|--------------------------|
| 2023         | 57,300                             | 480,684,000              |
| 2024         | 36,990                             | 489,999,920              |
| <b>Total</b> | <b>74,290</b>                      | <b>970,683,920</b>       |

Thank you, Mr Speaker.

**Mr First Deputy Speaker:** Any supplementary questions?

**Mr Gakpey:** Thank you, Mr Speaker.

I would like to find out from the Minister, that looking at the table presented. From 2022 to 2024, there was a decline in the quantity of fertilisers being purchased. What accounted for that? [*Uproar*]

**Mr Shaib:** Mr Speaker, he should file a new Question. He is basing his question on the Answer by the Minister. This is it. We have just read Order 89. [*Uproar*]

**Mr First Deputy Speaker:** Hon Member, your question is between a certain period. In that period, was the Minister at post as Minister? Therefore, if you ask a specific question, he will be able to make reference to the record and provide an answer. Now, you are asking about the factors that accounted for a decline which was not during his tenure of office. So, he can only answer that question making reference to the record. That is why supplementary questions must be regulated by Standing Order 89.

Yes, let us finish with the Member asking the question unless he is—Yes, do you have any further questions?

**Mr Gakpey:** Mr Speaker, in running the Ministry, liabilities and assets—

**Mr First Deputy Speaker:** I do not have a problem with that. But what I am telling you is that—Let us take it that you were not the Minister during the period 2022 to 2024. You have just come to that particular office, and a question is being asked regarding that office as to how many metric tonnes of fertiliser has been procured. What is the cost involved? And how it was distributed? Then, you pick

those pieces of information per the record and provided an answer to the question. But while at the Despatch Box, they are asking you what factors accounted for a decline, when it was not during the tenure of your office, would they be fair to you as Minister?

Supplementary questions are not to spring surprises.

**Mr Gakpey:** Mr Speaker, I will move on with further supplementary questions.

**Mr First Deputy Speaker:** Yes, if you have a further supplementary question, you may ask.

7:06 p.m.

**Mr Gakpey:** I would like to find out from the Minister, looking at the distribution, it is just the volume that is stated here. What about the regional breakdown of where the fertilisers went? That was what I was eliciting from him.

**Mr First Deputy Speaker:** If you are looking for the regional breakdown, your question would have said so.

**Mr Gakpey:** Yes, I said so.

**Mr First Deputy Speaker:** You said how the fertilisers were distributed. I think the Hon Member does not have any further supplementary question. So, Hon Richard Acheampong, let me hear you.

**Mr Richard Acheampong:** Mr Speaker, thank you very much. I want to find out from the Minister if the ministry has taken any steps to punish the owners of the donkeys that ferry fertilisers to Burkina Faso.

**Mr First Deputy Speaker:** Question overruled. Yes, Hon Kingsley, you have the floor.

**Prof Kingsley Nyarko:** Mr Speaker, we always take a cue from you when you always quote Order 88(7) or so. Mr Speaker, I do not seem to get the answer given to the Question. The Question was to ask the Minister for Food and Agriculture how many metric tonnes of fertilisers were purchased from 2017 – 2024, the total cost and how it was distributed. And the Minister brought a whole lot of issues. The Speaker has been advising us that their answers should be specific. This Question did not warrant all the thesis the Minister wrote.

**Mr First Deputy Speaker:** Hon Kingsley Nyarko, I believe strongly you are not to tell me what to do. I maintain in this House that the rules guide us as Members of Parliament as to how we ask question but there is no rule that guides or provides a yardstick by which we can measure the Ministers as to how they answer the question and it does not lie in your mouth to complain about the answer given as to whether it is correct or not, long or short. No!

**Prof K. Nyarko:** Mr Speaker, that is where the temptation lies because if you provide such answers, then I am also compelled to ask questions based on the answers.

**Mr First Deputy Speaker:** Please, let us make progress. Let us move to the Question numbered 432.

**Prof K. Nyarko:** Mr Speaker, my question to the minister is that he should

expatiate how the distribution was done because he only gave us numbers that were distributed but he did not tell us how they were done. Mr Speaker, the epicentre of the Question is how the distribution was done but here, he gave us the distribution numbers without telling us how it was done.

**Mr First Deputy Speaker:** Hon Minister, so how was the distribution done?

**Mr Dumelo:** Thank you, Mr Speaker. If my Colleague was listening to what I said, I said that the distributed fertilisers were given to the farmers and every year, according to the table, we have the number of metric tonnes that were distributed and they went directly to the farmers.

Thank you, Mr Speaker.

**Mr First Deputy Speaker:** Hon Members, I think we should move to the Question numbered 432 also standing in the name of Hon Gakpey.

### **Number of Tractors Imported between 2017 to 2024 and their Distribution across the Country**

**Mr Kwame Dzudzorli Gakpey (NDC—Keta):** Mr Speaker, thank you for the opportunity once again. I rise to ask the Minister for Food and Agriculture how many tractors were imported from 2017 to 2024 and how they were allocated across the country.

**Mr Dumelo:** Thank you, Mr Speaker. The 659 tractors were imported by the

Ministry from 2017 to 2024. These tractors included Massey Ferguson, Valtra, New Holland and LS Plus imported under the Brazil More Food Programme and Cabrio Compact tractors from Czech Republic.

They were allocated through the receipt of application letters from interested farmers and stakeholders across the country and upon satisfying the terms and conditions of the allocation letters.

The Ministry advertised the sale of the tractors and other Agricultural machinery in national newspapers and requested for interested farmers and stakeholders to apply for the purchase.

**Mr First Deputy Speaker:** Any supplementary questions?

**Mr Gakpey:** Yes, Mr Speaker. Thank you very much. In providing the answer, the Minister mentioned about the sale in terms of money, I would like to find out from the Minister if they have recovered all the money? [*Uproar*]

**Mr First Deputy Speaker:** Hon Member, your question is how many tractors were imported and how they were allocated across the country. For any question regarding price, file a specific question.

**Mr Gakpey:** Mr Speaker, well guided. I would file another question.

**Mr First Deputy Speaker:** Very well. Hon Members, let us move to the Question numbered 681, standing in the

name of Hon Emmanuel Kofi Ntekuni, Member of Parliament for Pru West.

### **Establishment of a Farmer Service Centre in Pru West**

**Mr Emmanuel Kofi Ntekuni (NDC — Pru West):** Thank you, Mr Speaker. I rise to ask the Minister for Food and Agriculture the plans the Ministry has for the establishment of a farmer service centre in Pru West Constituency, considering that the constituency typically runs on an agrarian economy.

**Mr Dumelo:** Thank you, Mr Speaker. The Ministry, as parts of efforts to improve farmer's access and utilisation of appropriate farm machinery and equipment for the agricultural production and increased productivity while reducing drudgery is in the process of establishing 58 farm service centres in agriculture districts under the first batch of Farmer Service Centres (FSCs). Mr Speaker the site selection is ongoing, taking into account priority commodities, production levels, existing agriculture machinery population, among others. Mr Speaker in the medium term of the Feed Ghana Programme, Farmer Service Centres will be established in all agrarian districts and Mr Speaker, it is noted that this Saturday, we will be inaugurating the first Farmer Service Centre in Afram Plains. Thank you.

**Mr First Deputy Speaker:** Any supplementary questionS?

**Mr Ntekuni:** No, Mr Speaker, thank you.

**Mr First Deputy Speaker:** Hon Members, this is a constituency specific

question. We will move to the Question numbered 714 standing in the name Hon Anthony Mmieh, Member of Parliament for Odotobri.

### **Irrigation or Mechanisation Interventions in Amansie Central District**

**Mr Anthony Mmieh (NPP — Odotobri):** Thank you, Mr Speaker. I rise to ask the Minister for Food and Agriculture what irrigation or mechanisation interventions have the Government implemented or planned for Amansie Central District to improve agricultural productivity and food security.

**Mr Dumelo:** Mr Speaker, the Ministry has begun preparation to roll out the Famer Service Centres across the country especially in all agrarian economy and Amansie Central District will also have its fair share of this intervention.

Again, Mr Speaker, immediately, the Ministry would deploy some of the water pumps seized from the *galamsey* sites to the Amansie Central District to support farmers' activities and in a long term Solar Powered Irrigation Scheme which Ghana Irrigation Development Authority (GIDA) is currently piloting would again be deployed as soon as possible. Thank you, Mr Speaker.

**Mr First Deputy Speaker:** Any supplementary?

**Mr Mmieh:** Yes, Mr Speaker. Could the Hon Minister indicate or provide timelines and specific locations for his intended projects within the district?

**Mr Dumelo:** Mr Speaker, I believe within three months, we would get the Hon Member some of the water pumps and then also if he is able to indicate to us some of the water bodies that he has, we will be able to supply those water pumps to him as well so that the farmers will be able to start using it. Thank you, Mr Speaker.

**Mr First Deputy Speaker:** Yes, any other supplementary question?

7:16 p.m.

**Mr Mmieh:** Thank you, Mr Speaker, this will be my last one.

Minister, with the greatest of respect, what are the measures that have been put in place to enable smallholder farmers in the district to access the intended solar-powered irrigation scheme?

**Mr First Deputy Speaker:** Hon Member, you know the implications of your question; you are violating the rules. So, take note accordingly.

**Mr Mmieh:** Very well. Then I would rephrase it.

**Mr First Deputy Speaker:** Yes, because your Question is to ask the Minister for Food and Agriculture what irrigation or mechanisation interventions have the Government implemented or planned for the Amansie Central District to improve agricultural productivity and

food security. So, your question is bordered on irrigation and agri-mechanisation, so let us stick to that in terms of supplementary.

**Mr Mmieh:** Mr Speaker, what measures are being put in place to ensure that smallholder farmers within my district can easily access these irrigation systems and mechanisation services?

**Mr Dumelo:** Mr Speaker, as Colleagues, I will definitely work together with him to implement this, and then also work together with the district

agriculture officers, so that we can implement or we can make your vision—thank you. *[Laughter]*

**Mr First Deputy Speaker:** Hon Members, today we have sat in excess of five hours, given the background and fortified by Standing Order 56(2). I would proceed to adjourn the House.

### **ADJOURNMENT**

*The House was adjourned at 7:19 p.m. till Wednesday, 18<sup>th</sup> March, 2026 at 12:00 noon*

### **Editor's Note**

This *Official Report* was adopted by the House on 27<sup>th</sup> March, 2026.